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First Session

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Day 108

The Honourable Nathan M. Cooper, Speaker

Legislative Assembly of Alberta The 31st Legislature

First Session

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New Democrat: 36

Independent: 2

Vacant: 2

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Legislative Assembly of Alberta

7:30 p.m.

Wednesday, May 7, 2025

[Mr. van Dijken in the chair]

Government Bills and Orders Committee of the Whole

The Deputy Chair: Hon. members, I'd like to call the committee to order.

Bill 47 Automobile Insurance Act

The Deputy Chair: Are there any members wishing to make comments? The Government House Leader has risen.

Mr. Schow: Thank you, Mr. Chair. I move to adjourn debate.

[Motion to adjourn debate carried]

Bill 53 Compassionate Intervention Act

The Deputy Chair: Are there any comments? I will recognize the Member for Edmonton-West Henday.

Member Arcand-Paul: Thank you, Mr. Chair. I'd like to move an amendment to Bill 53.

The Deputy Chair: Members, the amendment will be referred to as A3.

The Member for Edmonton-West Henday may proceed.

Member Arcand-Paul: Thank you, Mr. Chair. With this amendment I would like to just add on to what I've already spoken to. I don't need to add more of what the background is for this specifically to my debate on second reading for Bill 53, but it does bear some relevance to reiterate the ethos in which I bring this amendment. The heart of this amendment is brought about because of the disproportionate effect this will have on Indigenous peoples. In this spirit I want to quote from a criminal law case that is well known by criminal practitioners.

While I know that this is not explicitly a criminal law bill, the ethos from the seminal case of the Queen and Gladue from 1999 is relevant to the reason behind this amendment. This is from paragraph 68.

It must be recognized that the circumstances of aboriginal offenders differ from those of the majority because many aboriginal people are victims of systemic and direct discrimination, many suffer the legacy of dislocation, and many are substantially affected by poor social and economic conditions. Moreover, as has been emphasized repeatedly in studies and commission reports, aboriginal offenders are, as a result of these unique systemic and background factors, more adversely affected by incarceration and less likely to be "rehabilitated" thereby, because the interment milieu is often culturally inappropriate and regrettably discrimination towards them is so often rampant in penal institutions.

Again, while this is not related to criminal law, the apprehension powers under this bill are, unfortunately, very similar. To borrow a word from our colleague from Airdrie-Cochrane, these are recovery prisons, nothing less. This amendment will address this concern and the eventual administrative reviews that will be launched because

of these apprehensions. I think that bears some importance to hammer that point home and the need for this amendment.

I know that the reason for this bill is to address some of these underlying concerns, and I do know that the minister and the government are very aware of how this will disproportionately affect Indigenous peoples as we will have an Indigenous member on that committee.

I do believe that this is an amendment that will speak and strengthen the bill to make sure that we are addressing the historical lived realities of Indigenous peoples when it comes to apprehensions and potential mental health concerns and the need for appropriate treatment for Indigenous folks under this because, again, like I said, it will disproportionately affect Indigenous peoples.

Mr. Chair, it's for these reasons that I move this amendment. Thank you.

The Deputy Chair: On amendment A3 are there any other members wishing to provide comment or question?

Seeing none, I will call the question.

[Motion on amendment A3 lost]

The Deputy Chair: Any other members wishing to provide comment, question, or amendments on Bill 53? The Member for Calgary-Currie has risen.

Member Eremenko: Thank you, Mr. Chair. I move an amendment to Bill 53, please.

The Deputy Chair: Okay. The Member for Calgary-Currie can proceed. This amendment will be referred to as A4. Please read it into the record.

Member Eremenko: Thank you, Mr. Chair. I move that Bill 53, Compassionate Intervention Act, be amended as follows: in section 43 in subsection (2) by striking out "Subject to subsection (6)," in subsection (3) by striking out "Subject to subsection (6)," and in subsection (6) by striking out "subsections (2) to (4)" and substituting "subsection (4)"; in section 59 in subsection (2) by striking out "Subject to subsection (5)," in subsection (3) by striking out "Subject to subsection (5)," and by striking out subsection (5); in section 73 in subsection (2) by striking out "Subject to subsection (4)," in subsection (3) by striking out "Subject to subsection (4)," and by striking out subsection (4).

So what does that mean? Let's unpack that a little bit. Sections 43, 59, and 73, Mr. Chair, speak to hearing panels. These are the various stages of the bill in which a client to be determined has to stand before a three-member commission to have a care plan hearing which will determine their kind of course of therapeutic treatment. Section 59 speaks to the review hearings, and section 73 speaks to appeal hearing panels.

What we're seeking to do with this amendment is to remove the right of the commission to decide who can and can't be in attendance at these hearings; namely, that those individuals identified in the bill – the client, the client's legal counsel, and, where applicable, the client's legal guardian – must be permitted to be in attendance at the hearings.

The bill as it currently stands, Mr. Chair, is really quite extraordinary in the power that it grants the commission to decide who may or may not be in attendance, who may be present, and to what extent they may participate. Throughout the bill it is confirmed that a subject of Bill 53 is entitled to legal counsel. They have the right to refuse except in some, frankly, quite far-reaching areas related to medication and monitoring and assessment and

observation, and then, of course, when it comes to the role of the guardian who's actually been appointed that role as a result of some significant incapacity for that individual to be making decisions for themselves, the commission reserves the right to say that the client may not be in attendance at their own hearing, that the client's legal counsel may not be in attendance, that the client's guardian may not be in attendance.

Furthermore, when it comes to not just presence, there's also, like I said, how they might actually participate. Once more the commission is granted really quite extraordinary powers to decide to accept or, in fact, to decline representations to the hearing panel, including respecting the client's preferred outcome of the hearing, present evidence to the hearing panel, and for the client or their legal counsel or their guardian to cross-examine any person who makes representations or presents evidence at the hearing.

Not only do they just say – as we would in a more conventional judicial system, where a judge might be required to hear that evidence but then rule it inadmissible, the commission can just outright say no. They do have to provide rationale for that, but the very fact that they are provided with the power to say no outright is really bizarre, Mr. Chair, and goes far, far beyond what I would suggest are principles of natural justice that all of us, whether we are lawyers or otherwise, would expect from a judicial or, in this case, a quasi-judicial scenario.

7:40

I really struggle to figure out what the minister was trying to accomplish here. Certainly, when I'm done, perhaps he can speak in regard to why this was actually put in place. Why are we granting this three-person commission such incredibly overreaching power in terms of who is eligible to be in attendance and what can actually be offered by that person in attendance, especially legal counsel, Mr. Chair? For a person who has gone through the process to actually secure a legal representative to speak on their behalf in these hearings – again, it's to determine their treatment plan, it is to go through the review process that's required every six weeks, and it is also required in the appeals process. What is the rationale for why this is included?

You know, we have established here that there are some fundamental pieces of this legislation that I think should be incredibly concerning to the public, but that's not what we're debating here. I'm not debating the merit of the principles of this legislation, of this bill, or the objectives that I can only kind of assume the minister and the government are looking to accomplish. This isn't about the merits of the bill, but this is about a fundamental set of principles that I think every Albertan deserves, and every Albertan expects that they should at least be in the room when critical decisions are being made about them. They have the right to understand the rationale for those decisions being made about them.

We've established that this is involuntary. This is forced treatment. This is not something that people are voluntarily signing up for, but we have to put that aside, and I think that we can agree on both sides of this Chamber that when such critical and life-altering decisions are being made about a person, they have the right to be in the room when those decisions are being made. Certainly, they do as the client, as the subject of the hearing; their legal counsel, based on legal principles of what a person's representative is in fact equipped and employed to do.

Even the fact that the commission would hold the right to deny attendance by the legal guardian, Mr. Chair. It assumes that if a person has a legal guardian, there is some kind of severe enough incapacity for that person to understand what is happening. A guardian is there, therefore, on their behalf. Why are we denying their presence and participation in a hearing that

directly involves them or, in the case of a guardian, perhaps their loved one?

Like I said, it really is quite extraordinary that this be something denied of the individual at the centre of this very administratively intensive, resource-intensive process. The fact that the three-person commission can choose to exercise what is really an extraordinary level of authority and power to deny the attendance of that individual just feels really out of place. It is a significant overreach.

Again, not debating the merit of the bill in its entirety this evening; really, just wanting to focus in on why we have granted such extraordinary powers to the commission when it comes to excluding people from being able to participate and to attend on such critical decisions that relate to their own person, to their own capacity, and to their own experience, to actually be able to speak to that independent of any kind of intervention from the commission or the minister or anybody else.

Again, this is in regard to care plans, so the initial treatment plan that will be determined for that individual. Much to my colleague's earlier amendment, do they have the right to speak up and request culturally appropriate care? Do they have the right to speak up about additional comorbidities that require attention? Do they have the right to speak up about certain medications that they will take versus others that they won't consent to? Secure versus community-based treatment? It's possible that the commission will deny any of that information, even just the provision of it, let alone the consideration.

It's in the care plan hearings, it's in the six-week review hearings, and it's in the appeal hearings that we have granted far too much power, in my opinion, to the commission to decide what is, in fact, even potentially provided, let alone considered appropriate or admissible.

Thank you very much, Mr. Chair. On that note, I will cease my comments, and I look forward to the answers from the minister.

The Deputy Chair: Thank you.

On amendment A4, are there any others wishing to provide comments or questions?

Seeing none, I am prepared to call the question.

[Motion on amendment A4 lost]

The Deputy Chair: We are back onto the main bill, Bill 53, Compassionate Intervention Act. Are there any members wishing to provide further comments or questions on Bill 53?

Seeing none, I am prepared to call the question on Bill 53.

[The remaining clauses of Bill 53 agreed to]

[Title and preamble agreed to]

The Deputy Chair: Shall the bill be reported? Are you agreed?

Hon. Members: Agreed.

The Deputy Chair: Any opposed? That is carried.

Bill 48 iGaming Alberta Act

The Deputy Chair: Are there any comments, questions, or amendments to be offered with respect to this bill? The Member for Calgary-Falconridge.

Member Boparai: Thank you, Mr. Chair. I rise today to address Bill 48, the iGaming Alberta Act, which is being introduced as part

of an effort to regulate online gambling in our province. While the intention behind this bill is clear, to create a framework that brings online gambling out of the shadows and under provincial regulation, there are significant questions and concerns that need to be addressed before we can fully evaluate its potential impact on Albertans. Let me emphasize that there are several key issues that must be discussed regarding the proposed framework for iGaming in Alberta.

First is the uncertainty around regulations and rules. A central concern with Bill 48 is that we still do not know what the specific regulations or rules will be for the proposed Alberta iGaming corporation. While the bill sets the groundwork for the creation of this new Crown corporation, the details regarding player protection, advertising restrictions, and responsible gambling policies will be determined only after the bill is passed.

As the MLA for Calgary-North East has noted, only time will tell if Alberta's attempt to corral the online gambling sector will be successful as the actual rules and regulations companies will need to follow haven't been determined yet. This lack of clarity raises several questions. What will the regulations look like? How will the government ensure that gambling does not become more addictive or accessible to vulnerable populations, especially minors and at-risk individuals?

Second is the impact on children, youth, and gambling addiction. One of the major concerns raised by experts is the impact this bill could have on children and youth. Online gambling is already a significant issue with an increasing number of young people gaining access to gambling platforms. Unfortunately, age verification measures can be easily bypassed with fake birth dates. As reported in a CBC article, Ontario saw a 78 per cent increase in wagers being placed in the first year after implementing similar legislation. With such a sharp increase, how can we ensure that minors aren't exposed to online gambling?

7:50

How will the government address the potential harm that greater advertising exposure may have on children and youth, who are more vulnerable to addictive behaviours? The bill itself does not include any concrete measures to limit advertising aimed at minors or to prevent underage access. While the government has acknowledged that they have the power to limit advertising from licensed gambling sites, they are unable to control advertisements from out of province or offshore companies. This poses a real challenge when considering the effects of increased exposure. Will the government implement stricter regulations on advertising, particularly during programs that target younger audiences?

Third is player protection and gambling addiction prevention. Another area of concern is the absence of clear measures to address gambling addiction in the bill itself. While it is true that the bill allows for regulations to be introduced after its passage, these are currently unknown.

The MLA for Calgary-North East rightly pointed out that the UCP will need to ensure more tools and resources are in place to support those with gambling addictions. The voluntary self-exclusion program mentioned in the bill is a step in the right direction, but experts like University of Calgary Professor David Hodgins stressed the need for a comprehensive harm reduction strategy. This would include not only self-exclusion programs but also public education campaigns on the risk of gambling. In Ontario, where similar legislation was introduced, there was a significant increase in gambling participation. How will Alberta address the risk of gambling addiction that accompanies greater accessibility to online gambling?

Fourth is the financial impacts and equitable distribution of revenue. There are also important questions about how the revenue generated from this new system will be used and who will benefit from it. The government has stated that one of the benefits of this will be increased revenue, but we must be clear about how this revenue will be distributed. Will the funds generated from online gambling be reinvested into the community, including into services for those affected by gambling addiction?

My colleague from Calgary-North East has raised a concern that the increased revenue and jobs are realized by all Albertans, including First Nations and Métis people, no matter where they live in the province. In Alberta the charitable organizations and First Nation communities currently benefit from revenues generated by physical casinos, which fund essential social and community programs. Will these groups continue to receive their fair share of funding if the bill is passed, or will those funds be redirected into the general revenue fund?

Mr. Chair, a CBC article highlights that many Albertans are concerned about how the move to regulate online gambling could impact local charities, which rely heavily on the revenue generated from land-based casinos. What is the government's plan to ensure that these charities and First Nations communities are not left behind?

Fifth is the transition from unregulated to regulated gambling. As the bill aims to bring online gambling out of the grey market and into regulation, one major challenge will be ensuring that offshore operators comply with Alberta's new rules. While Ontario's model has led to the registration of several offshore gambling companies, the success of this transition remains uncertain. An MSN report notes that Ontario saw 40 offshore online gaming companies register after they passed legislation but also observed how many offshore companies continue to operate unregulated. How will Alberta ensure that these companies adhere to the new regulations, and what measures will be in place to enforce compliance?

Sixth is the accessibility of online gambling and potential for increased gambling participation. Another concern with the bill is the potential for increased participation in gambling, particularly as online platforms make gambling more accessible. According to a CBC article on Ontario's online gambling experience the province saw a 78 per cent increase in wagers being placed after they implemented their regulated online gambling system. While this increase in participation may lead to higher revenue, it could also result in more people developing gambling problems. What steps is the government taking to limit gambling addiction as online gambling becomes more mainstream? Are there sufficient checks and balances to ensure that individuals are not being exposed to aggressive market techniques or being encouraged to gamble beyond their means?

In conclusion, Bill 48 represents an ambitious step toward regulating online gambling in Alberta. However, the lack of clarity around key issues such as player protection, advertising restrictions, and revenue distribution leaves many questions unanswered. We must ensure that the regulatory framework is robust enough to protect all Albertans from the harms of gambling addiction. The government must provide more clarity on how the increased revenue will be used, how online gambling will be kept safe, and how vulnerable populations, including children and youth, will be protected from the potential harms of this expanded industry. We will continue to monitor the development of the regulations that will follow and to ensure that any move toward regulating online gambling is done in a way that prioritizes the safety and well-being of all Albertans.

Thank you, Mr. Chair.

The Deputy Chair: Thank you.

The Member for Calgary-Foothills.

Mr. Ellingson: Thank you, Mr. Chair. Yeah. I'm pleased to rise to speak to Bill 48, and I think several of my colleagues have already made some arguments about Bill 48 and why this can be a beneficial bill but where there's also some opportunities lost perhaps in this bill.

Understanding the purpose of the bill, we do want to create some kind of, like, additional regulations around online gambling. Obviously, online gambling is exploding in its popularity and accessibility. It's also incredibly difficult to regulate, as we have heard from some of my colleagues that Ontario maybe kind of went down this path first in creating an online gambling corporation and trying to attract some of that online gambling into a government-regulated space.

8:00

But we also know that there are a lot of relatively easy paths for people to take to access sites and gambling sites that maybe are outside of a regulatory framework, and I think it behooves the government to always be thinking about that. This is a dynamic issue. We know that the regulations to come are perhaps going to be dealing with some of those, and I look forward to over time kind of a constant evolution of, like, how Bill 48 is being applied or the regulations that we have accompanying Bill 48 to address some of the issues that have already been raised, including youth access to online gambling.

But there are also some economic costs to online gambling that I don't know whether or not I have heard my colleagues talk about, you know, potentially some of the maybe diversion of funds that would have been raised by casinos or gambling facilities that are on First Nations land and that we might be taking away some revenue from First Nations and that we perhaps need to be looking at ways of revenue sharing with those that are operating casinos and other kinds of gambling facilities in their raising of funds.

But I think there's something else that we need to think about, too, the other kind of aspect of opportunity cost when it comes to gambling and facilitating gambling and regulating gambling, so I'm going to take a short step back in time. I think I've still got a couple of minutes.

Quite some time ago – I'm over the average age here in this House – I used to be on the board of an organization called the Arusha Centre, which still exists today. It's a social justice organization in Calgary. What was interesting in that time is that, you know, we were talking about how as a not-for-profit organization we were raising money to keep our own operations going. We had a long, long conversation about whether or not as an organization we should be participating in casinos and taking funds from casino participation, and eventually we came to the decision as a board that we were not going to participate in casinos and seek to take revenue from casino participation even though we did definitely need those funds at the time.

The reason that we chose not to do it is because of the data around how gambling is a tax on the poor and whether or not we should be in fact facilitating access to gambling or whether or not we should actually be spending more time in trying to detract people from gambling, making it more difficult to access gambling. I think there are maybe some aspects of this bill that are also not necessarily giving that consideration.

It's estimated in some of the work that's been done in Ontario that some of the poorest households in Ontario are maybe spending as much as 5 per cent of their monthly income on gambling and that those families that are in lower income might be kind of, like,

reaching out to gambling as an opportunity to maybe lift them out of the poverty that they're feeling every day. But, as we all know, the odds are stacked against them, so it turns into what we call a tax on the poor. They end up spending so much more on gambling than they could ever hope to gain back again, and this also includes when we're talking about online gambling.

People who fall into that – and it maybe kind of, like, leads to a downward spiral that can cause or augment other social challenges that that household or that person may be facing. As a result, they may be falling into a space where the government then has to step in with social programming or supports to lift that person back out of that dark place that they have arrived in. We've obviously had lots of conversations about addictions in this House.

One of the things I'd like to point out with Bill 48 is that it appears that the funds that would be earned would be coming into general revenue, and I think we need to think more about maybe specifically directing those funds to support people who are facing addictions with respect to gambling. We should maybe be careful in using those funds about educating people about the challenges that could be faced with gambling to give them a sober second thought before they enter into online gambling or any kind of gambling. I think these are maybe some of the areas that could be thought of when we think about Bill 48.

There are some good things to Bill 48, but I think there are also some things that we really need to think about, and hopefully when we start to create the regulations attached to it, those will be duly considered.

The Deputy Chair: Thank you.

Any other members wishing to provide comments or questions, amendments on Bill 48?

Seeing none, I am prepared to call the question.

[The remaining clauses of Bill 48 agreed to]

[Title and preamble agreed to]

The Deputy Chair: Shall the bill be reported? Are you agreed?

Hon. Members: Agreed.

The Deputy Chair: Any opposed? That is carried.

The Government House Leader.

Mr. Schow: Thank you, Mr. Chair. I move that the committee rise and report progress on bills 50, 46, and 47 and report bills 48, 51, and 53.

[Motion carried]

[Mr. van Dijken in the chair]

The Acting Speaker: The Member for Bonnyville-Cold Lake-St. Paul.

Mr. Cyr: Thank you, Mr. Speaker. The Committee of the Whole has had under consideration certain bills. The committee reports the following bills: Bill 51, Bill, 53, Bill 48. The committee reports progress on the following bills: Bill 50, Bill 46, and Bill 47. I wish to table copies of all amendments considered by the Committee of the Whole on this date for the official records of the Assembly.

The Acting Speaker: Does the Assembly concur in the report? If so, please say aye.

Hon. Members: Aye.

The Acting Speaker: Any opposed, please say no. That is so ordered.

Government Bills and Orders Third Reading

Bill 37

Mental Health Services Protection Amendment Act, 2025

The Acting Speaker: The hon. Minister of Mental Health and Addiction.

Mr. Williams: Well, I'm very happy to rise and move third reading of Bill 37, the Mental Health Services Protection Amendment Act, 2025.

I think it's an important piece of legislation that increases standards and accountability for those operating in this space. This bill was introduced in 2018 in the 29th Legislature, and it was an important piece then, as it is now. We've continued to use it to regulate a number of different services, including withdrawal management services, where we'll be having now exclusively medically supervised withdrawal management or detox stabilization services across the province to support individuals in the process, the beginning steps of recovery as they detox from drug and substance use. Of course, we also regulate through this intensive treatment services, which include residential care for an individual with addiction, and nonintensive recovery services, including a recovery-oriented environment that provides less intensive treatment compared to intensive treatment services in other categories.

8:10

The legislation would also move content regarding bed-based addiction treatment services from the act to regulation and our standards. It would rename and clarify language surrounding residential addiction treatment services and bed-based addiction treatment services and supervised consumption services and drug consumption services and, of course, update more language for clarity and provide more flexibility within legislation to address legal challenges, court cases, and unique circumstances of Albertans and the public good as we continue to use this important piece of legislation.

I'm happy to continue speaking to the legislation. I know there have been a number of different questions brought up in Committee of the Whole with proposed amendments. I tried to address some of them as we went through committee. I'm happy to again bring it forward now.

Regulation really is the proper place for many of those details that you need to have in an act when it comes to best practices that have a technical nature to them, especially best practices for detox, et cetera. Legislation is meant to be broader in its nature, and of course regulation and standards are meant to be applied in a detailed way. These are, obviously, publicly reviewable – everyone can see what this is – and, obviously, subject as well to review by the courts.

Of course, there was a question around section 24.1(1), which is the section surrounding exemptions. I'm happy to say that I addressed those thoroughly, as best I could, in the debate during Committee of the Whole. I'm happy to address it again if it comes up in third reading. But I will say that there are a number of different pieces of legislation – I think of a number of pieces nationally around immigration – that have exemptions that this one is modelled after to make sure we have flexibility, that we can address challenges as they come, whether that be through public interest, whether that be through making sure the bill allows flexibility for scientific research when it comes to administrative purposes and, of

course, when it comes to caring for unique circumstances across the province for individuals.

I can tell you now, and I appreciate the concern, that it is not my intention to see that exemption widespread in use, but it is an important piece of the legislation. Of course, the 29th Legislature, with legislation introduced by an NDP government, included parallel exemptions for ministers to use in the Climate Leadership Implementation Act, Supporting Alberta's Local Food Sector Act, and Modernized Municipal Government Act, to name just a few. This is a regular tool used to make sure that bills can withstand scrutiny of courts, that they have flexibility, that the application of rules, standards, regulations, and, of course, legislation can meet the needs of a modern province with a diverse set of populations and unique circumstances we have yet to see come up. We're happy to say that section 24 makes the legislation stronger.

I can also tell you that my intention is definitely to have regulation, legislation, and the standards apply across the board. I know that the Member for Calgary-Varsity brought this up as a number of concerns. Even in debate surrounding different pieces of legislation, it came back to the exemptions. I can be abundantly clear that it is necessary for scientific research that we can have the very high thresholds that are used in the ethical reviews that happen before that research takes place and can only happen if the legislation is flexible to allow that.

I know that there were a lot of concerns as well brought up surrounding land-based and culturally appropriate treatment for Indigenous Albertans. I couldn't agree more. That is absolutely essential. The Alberta recovery model is built and based on the assumption that a partnership and a proposition, instead of an imposition, with Indigenous Albertans is going to lead to greater outcomes, better success not only for the province but, importantly, for those communities that have often suffered intergenerational trauma as a result of addiction. I can tell you, Mr. Speaker, that trauma lives in addiction. It lives, it breeds, and it continues to propagate itself. Part of the path out, not all of the path, not the only solution, is bringing recovery to those who suffer all across this province, including on-reserve, with our 11 recovery communities, five of those being built with Indigenous communities at the helm, owning and operating those.

I can tell you that I care deeply about making sure that these rules continue to be applied reasonably. I think that scrutiny is important. Of course, if there are exemptions, they will be publicly notified on a public-facing website. Of course, regulations will, as is always the case, along with standards be publicly hosted on the government website, and of course all this will be subject to review by the courts. This is essential legislation to make sure we modernize and are meeting the needs of Albertans and those providers who work in this space, who operate in this space, and who are subject and needing treatment here from the service providers that are regulated by the Mental Health Services Protection Act. I can tell you that those individuals are wide and diverse.

We heard certain concerns around nonregulated professionals not being regulated with employment standards in this act. This is not the appropriate place to regulate health professionals. If there's a need to continue regulating more, of course, we're always looking at that as a government. We also need to be flexible and look at the individuals, for example, who come into recovery coaching or those who I back one hundred per cent in their lived experience and what they know about recovery. We need to make sure that they are also able to continue operating in that space. This legislation is not for employment standards or regulating professionals. This legislation instead is dedicated to the mental health services protection that you need to have through standards, regulations, and legislation that

enable us to make sure Albertans are getting the absolute best care possible in these spaces.

With all of that, I believe it's a balanced piece of legislation. I'm happy to continue engaging in debate. I think it's one that this Chamber afterwards, whatever it ends up looking like, should be proud of if we do vote to move forward on it. I can't wait to see it implemented across the province in all these different areas that it currently serves and the ones that it will continue to serve through its amendments.

The Acting Speaker: Thank you.

Any others wishing to make comments? The Member for Calgary-Currie.

Member Eremenko: Thank you, Mr. Speaker, and thanks to the minister for his comments in this final stage of debate for Bill 37. There are a couple of things that I think bear worth repeating. Let's talk about that exemption piece very briefly. We did of course put forward an amendment earlier on in the month to really ask for the folks on the other side to consider striking this ability for the minister to file his own exemptions, whether they be applied to the service provider or to a specific individual in any given facility, and I'm still struggling here. The minister just spoke about the flexibility that these exemptions offer, but then in the past we've also heard how the exemptions offer consistency. I'm not sure how we can offer flexibility at the same time as providing consistency in terms of the protections and assurances that anybody working in or attending some of those spaces as a client can actually be assured of consistency yet flexibility. They seem antithetical to me.

Ultimately, if the tables were turned and if it was our caucus presenting this kind of ministerial power, would the members opposite be okay? I would argue that, no, they very likely would not be because, regardless of political stripe, putting that kind of power and decision-making in the hands of the minister, I think, should be very concerning for all Albertans.

Just a couple of other pieces here. You know, the minister also just talked about the value of land-based and culturally appropriate care, but right off the top of this evening session my good colleague from Edmonton-West Henday put forward, I think, a very substantive amendment to Bill 53 speaking to the importance of being very explicit in the understanding of First Nations, Indigenous, and Métis people in regard to substance use disorders and seeking to embed right into Bill 53 consideration for those experiences both in terms of what precedes their involvement with compassionate intervention and also what follows as far as culturally appropriate treatment plans.

The minister had nothing to say to that amendment but is happy to speak to it now under the Mental Health Services Protection Act. I have to wonder about the authenticity of such comments when they so clearly strongly apply here but not necessarily to Bill 53.

Mr. Williams: Point of order.

The Acting Speaker: A point of order has been called.

Point of Order Language Creating Disorder

Mr. Williams: I'm reluctant to rise on a point of order related to an issue to do with me personally. I'm happy to debate substantively the matters. Questioning the authenticity of my intentions as a

minister and the comments made I think is just unhelpful to a productive debate.

8:20

I believe that there's a lot of substantive engagement here. The point can be made without questioning a member's authenticity or intention. I think it's a fair point to be made. It adds nothing to debate, and I will continue to rise if we question each other's motives and intentions on this. Let's stick to the meat of the legislation and the content at hand rather than trying to make pseudo-personal attacks to members opposite.

The Acting Speaker: Could the Deputy Government House Leader please ...

Mr. Williams: Section 23. All of it. Why not.

The Acting Speaker: All of it. Okay.
The Official Opposition Leader.

Ms Gray: Thank you very much, Mr. Speaker. This is not a point of order. I was listening carefully to my colleague pointing out the minister's words on this particular piece of legislation, Bill 37, and comparing and contrasting to an amendment that happened just 40 minutes earlier on Bill 53 on a really similar topic, questioning the authenticity because of the change in action, not as a personal attack but because the motivations behind government and behind what's happening truly, when you look at the two things that are so similar, become, I believe, a matter of debate.

I'm very much interested in hearing what my colleague has to say. I think there's been a really good conversation happening this evening. This is not an attempt to start lobbing personal attacks, and I don't think it's a point of order at this point, Mr. Speaker.

The Acting Speaker: I do not find this to be a point of order. I do find it to be, as the Opposition House Leader has alluded to, that it was skating very close to the edge of a personal attack and that we need to be very careful with how we choose our language to ensure that it doesn't cause disorder within the Chamber here. I will not consider this to be a point of order but a matter of debate, and I will ask the Member for Calgary-Currie to continue with her comments.

Debate Continued

Member Eremenko: Thank you very much. I won't be too much longer here.

The Mental Health Services Protection Act, Mr. Speaker, involves facilities. It involves, you know, the quality and the standards by which care is provided in those facilities, and the regulations and standards and licensing requirements cover several different categories of facility.

Of course, we have now been introduced to a new category, the compassionate intervention facilities that are providing, according to Bill 53, secure-based care. The now former Minister of Infrastructure has raised, I think, some very significant flags around the actual capital builds for these compassionate intervention facilities that, in my mind, are directly related to the quality of care that is then actually able to be provided in those spaces. According to documents that have been tabled, the compassionate intervention facilities were initially going to cost \$230 million to build, and they would have been opened in 2027. That number has since been significantly revised to \$90 million apiece, opening in 2029.

I would expect, Mr. Speaker, that the considerations of a facility that would cost \$230 million to house 150 clients against their will versus a facility costing \$90 million for 150 people are going to

have some pretty significant discrepancies. When we're talking about the licensing and the standards required of these facilities, I have significant concerns that when the number has gone down as significantly as apparently it has for reasons we have no access to, how much can Albertans trust that the quality of that facility, that the quality of the care that is going to be provided in that facility when it has been so significantly reduced in budget is in fact going to be there?

There are millions of dollars being poured into Mental Health and Addiction with thus far very little accountability or demonstration of the impact of said investments. When we complement that or align it with more licensing and standards and regs that come out of the legislation and into the ministerial order realm, where the minister can with the signature of his name bring them into being, it does not evoke the kind of trust, the kind of accountability that Albertans would expect of the system.

Bill 37, you know, I agree is incredibly important. It is incredibly important that we trust what's actually happening between those four walls. Thus far over six years of this government I don't think there's any more transparency about what's happening in these facilities than there was before, and I don't believe that Bill 37 is in fact improving the transparency of what's happening there, particularly when the budget for the newest facilities has dropped by as much as it has, \$140 million less. What is being compromised when we have underspent or underbudgeted as significantly as that? Certainly, it's a big flag of concern for the former Minister of Infrastructure. He's raised it a number of times in these Chambers, and I echo those concerns.

Thank you very much.

The Acting Speaker: Any other members wishing to speak? The Member for Calgary-Edgemont.

Ms Hayter: Thank you, Mr. Speaker. I rise today to speak against Bill 37, the Mental Health Services Protection Amendment Act, 2025. For me, you know, knowing that the UCP is creating the Alberta recovery model under the leadership of Marshall Smith, who was the former chief of staff of the Premier, is concerning. It raises a lot of alarms for myself and my constituents, knowing that this bill supports a framework that we're looking at the three designations of care beds: the withdrawal management, intense recovery, and nonintense recovery.

For me, though, it just raises a lot of concerns, knowing who helped architect this bill, and knowing that the residential addiction services are going to become bed-based addiction services and supervised drug consumption sites is worrisome. When we start talking about that sort of stuff, it leads into our public safety, and I know the constituents of Calgary-Edgemont are concerned about safety. They're concerned about a lot of things.

You know, we look at under Alberta – things have become less safe under the UCP. I kind of look at some of that stuff. When we take \$2 million from prevention funding for gender-based violence, it's making Alberta a little less safe. As well, when instead of doing preventative work in our schools with our children like opting into sex ed and teaching them all these different things, we're just making Alberta a little less safe. I want Calgary-Edgemont constituents to be able to walk around their community. I want them to be able to walk downtown and feel safe and be confident that their children can be safe. That's very important.

You know, I was looking at the wait times, and I was hoping that at some point the wait times would be made public by the minister. We haven't really heard about the wait times. I know the funding from SACE was removed, and at one point there had been funding put in, Mr. Speaker, so that we would be shortening the time frame

for people to be able to get support. I think it's important that we're reporting on the wait times for all of us, so I'm hopeful that we could get some wait times given to us.

The other thing, you know – I was reading about this – is also bed spaces. If we're wanting to create bed spaces for this, why are we not also creating bed spaces for women's shelters? One of my shelters in Calgary alone due to lack of funding has just shut down 19 beds.

[The Deputy Speaker in the chair]

It's really hard, I think, for most Albertans and I know the constituents in Calgary-Edgemont to trust the government with Bill 37, especially when we are in the midst of a corrupt care scandal. You know, corrupt care is actually on the minds of even the constituents of Calgary-Edgemont. We have many, many e-mails in the inbox that are basically saying they cannot trust the government because of corrupt care. It makes me really worrisome if we're going to be looking at health care. You know, mental health is under health care. How can we trust this government to be also taking care of our mental health and our addiction services?

8:30

I got a letter from Mark Metcalf, and he was writing to me regarding the corrupt care and the trust within the government. Unfortunately, I've cut and pasted his letter, and I'm going to have to make sure I don't say anything unparliamentary by using names. I apologize, Madam Speaker. I will edit myself. He wrote:

In recent months, my disappointment in [the Premier] and her leadership of the UCP ... has reached an all-time high. The widespread allegations of corruption, including claims of election interference and the misappropriation of \$600 million from Alberta Health Services for political kickbacks, have severely undermined my confidence in [the] ability to lead effectively and ethically. These actions not only reflect a lack of integrity but also a blatant disregard for the well-being of Albertans who rely on our public services.

This here is a public service.

Mark goes on to say:

Furthermore, the UCP's attacks on public education and healthcare are alarming. It is disheartening to witness the government prioritize political agendas over the fundamental rights of citizens to access quality education and healthcare.

He talks about the misuse of taxpayer dollars with trips to Florida. As well, he talks about Trump and tariffs. At the end he goes on to basically say, though, that under the leadership of this government "the UCP has strayed far from the values of accountability, inclusivity, and respect for all Canadians." The confidence for the government has gone down and diminished, and he wants people that are going to represent "the interests and values of ... Albertans."

I think that because of this corrupt care scandal, how do we trust that people's mental health, their recovery from addictions are going to be, you know, taken care of? I'm hopeful that the minister will table a contract for the recovery communities, for the therapeutic living units, and for the two secure compassionate intervention facilities. It would be nice to have full transparency for all of us as well as for all of our constituents. I was very grateful that the Member for Airdrie-Cochrane joined us to say that we want a public inquiry.

On the facts of the lack of transparency and everything that's going on, I cannot support Bill 37.

The Deputy Speaker: Are there any other members to join the debate? The hon. Member for Edmonton-Highlands-Norwood.

Member Irwin: Thank you, Madam Speaker. It's an honour to rise in this Chamber. I'm not going to speak too long, but I do want to get on the record on Bill 37. You know, I've had the opportunity in this Chamber a few times to talk about the importance of mental health. I'm entirely grateful to my colleague the Member for Calgary-Currie, who has done such an incredible job on this file. In fact, I can say that she's joined me in a number of meetings with stakeholders in my riding of Edmonton-Highlands-Norwood, where we have the bulk of, a lot of the social service agencies and a lot of the organizations that are working with unhoused folks, in particular. I've just very much admired her leadership and her willingness to listen and to engage in difficult conversations, too.

I think I wanted to get on the record because, you know, as she noted, I walk the streets of my riding, Edmonton-Highlands-Norwood, neighbourhoods like Boyle Street, McCauley, where we do see the majority of visibly unhoused folks in this city. There are many, many folks who are struggling daily. We know when we talk to folks that Indigenous people are overrepresented in our houseless population, so I, too, wanted to echo my colleague from Calgary-Currie's concerns around the fact that the minister is willing to speak about supports for the Indigenous community when it comes to recovery and mental health on Bill 37, which overall is mostly a lot of sort of kind of technical changes. It's a lot of housekeeping. It's not a lot of substance.

He's willing to talk about those communities in the context of Bill 37, but when my colleagues, in fact my Indigenous colleagues, my colleague the Member for Edmonton-West Henday puts forward, you know, a thoughtful amendment on Bill 53, the Compassionate Intervention Act, related to similar issues, the minister is not willing to engage and not even willing to defend his position in not supporting it. I just find that challenging, too. I'm not attacking his character at all. I would have loved to just hear a bit more rationale from that minister. I know he, too, cares about his file. He comes at it from a different perspective than us on this side of the House. But, you know, I would have liked to just hear a bit of a rationale as to why he wouldn't be supporting it.

You know, I just think I have to also note on the record, since we are in third reading, that this government has such an opportunity to truly make a transformational impact on the communities that I represent in Edmonton-Highlands-Norwood but across the province as well in the area of mental health, yet when given the opportunity we get Bill 37, which, again, is a lot of housekeeping. I'm not disputing that some of those pieces are needed, but as my colleagues have pointed out, we have a lot of concerns with the bill as well and similarly with Bill 53 when we're talking about mental health. We know. We've heard from countless stakeholders that there are concerns, and I don't need to echo those here because, of course, that would be potentially out of order.

However, coming back to the neighbourhoods that I'm just so honoured to represent and have been able to represent for the last six years, I think about the folks that I've met, the family members that I've met who've lost people to the drug poisoning crisis, and there have been too many. There have been too many. I know that my colleague from Calgary-Currie talked about this the other day in Bill 37 debate, and it really made me pause, too, right? We're still, I think, around five people...

Member Eremenko: Down from five.

Member Irwin: Okay. Down from five to three people a day. Regardless, one is too many. One a day is certainly too many. One a month, one a year is certainly too many as well.

You know, I come back to the conversations we've had multiple times in this Chamber around the need for the wraparound supports for folks. One of the things – gosh; I'd have to search *Hansard* or, I don't know, my social media or something to talk about the number of times that I've brought up the need for permanent supportive housing. I haven't seen movement on that, on permanent supportive housing, from this government at all. You might say, and maybe the chair is thinking: well, what does that have to do with Bill 37? Well, we know that for a lot of folks who are struggling with mental health and addiction, one of the best ways to get them housed and to get them supported is to provide permanent supportive housing with the wraparound supports so that you can have mental health supports that are needed. You can have the culturally relevant supports that are needed. I've said it many times, and I'll say it again.

We have examples that we know work. We have Ambrose Place in the beautiful neighbourhood of McCauley in my riding, led by NiGiNan housing, which the data shows saves money, and it saves lives.

I bring that up to say that, you know, when this government has an opportunity, like they do, to introduce a whole lot of legislation related to or tangentially related to mental health, I would love to see some of those concrete actions being taken. Mark my words. I promise you that if this government were to invest in a whole heck of a lot more permanent supportive housing, we would see those three deaths a day decline rapidly. I promise you that.

With that, Madam Speaker, I just really wanted to get on the record that I'm disappointed because this truly was an opportunity for this UCP government in this legislative session – I don't think we have any more bills coming – to really make a dent in the houselessness crisis, in the mental health and addictions crisis, but unfortunately we're not seeing that from this government.

With that, thank you for listening attentively to my remarks.

The Deputy Speaker: Any other members to join the debate on Bill 37 in third reading?

Seeing none, would the minister like to close? The hon. Minister of Mental Health and Addiction.

Mr. Williams: Yes. Thank you. I'll try and stay brief as well. I appreciate the engagement from members opposite. There was substantive debate. There was also a lot of advice for government surrounding future legislation and programming. We heard a lot about another bill, Bill 53, Compassionate Intervention Act. We heard about housing supports. We heard about women's shelters and programming that should accompany it. I can tell you that though it doesn't relate to this bill immediately, which is, you know, demonstrably true, as the Deputy Government House Leader I'm taking note of that, of course, and we're happy to consider how we need to address those crises in tangent with what we're doing here with MHSPA amendments that we're bringing forward.

8:40

Both my parents being teachers, they were big proponents of modelling. I'll model now examples to members opposite of, without ascribing any kind of unavowed motive, a way to show contradictions in some of the debate brought forward. Not putting individuals on the spot but, instead, sort of the unreasonableness of it.

I appreciate that, again, on a previous debate an amendment was brought forward by the Member for Edmonton-West Henday on Bill 53. The member spoke for a grand total of two minutes and 19 seconds, at which point there were no members opposite who continued that debate. It's a substantive amendment, obviously, in

Committee of the Whole, and it was voted on immediately. I think it could have been worthy of more consideration had members opposite or others wanted to continue the debate, but this Chamber chose otherwise. Two minutes and 20 seconds: I can't think of many amendments that have been on the floor that short a period of time.

Then I want to address as well the concerns around the exemption in section 24, where members opposite were concerned that if the shoe were on the other foot, they couldn't imagine what politically we would feel on this side of the House had those been brought forward. Well, I listed a number of pieces of legislation that members opposite and, to be honest, Trudeau Liberal governments had brought forward with exemptions. I have never made a social media post on it. I have not moved to have those pieces of legislation repealed. The shoe is on the other foot. Exemptions like this, like we see from the minister's capacity, are normal so that legislation continues to be flexible and meets the needs of Albertans day to day.

I'll also note – again, not saying that members opposite don't have more important things to do – there have been zero questions in question period in a matter of probably eight-plus weeks that this bill has been introduced. They're very welcome to do so. Obviously, they have important questions they need to ask. They're welcome to that. I don't think they think this is unimportant, but I think it does speak to perhaps a contradiction and argument, members opposite escalating a mode of attack on the other side because of it.

I also for the record have not had a single question on Bill 53 in question period. I'm very happy to hear it at some point if members are concerned about it, if they believe it is such dramatic, consequential legislation. I'm happy to debate it. I, unfortunately, can't stand up in question period and address those. I have to wait for members opposite to do so. I hope that does happen before it passes.

I never thought we'd take this turn in closing debate, that we're talking about other legislation exclusively, but I guess that means it's likely we'll see more support from members opposite on Bill 37.

With that, I encourage all members to vote with the government on the bill I put forward, to pass Bill 37.

[Motion carried; Bill 37 read a third time]

Bill 38

Red Tape Reduction Statutes Amendment Act, 2025

The Deputy Speaker: The hon. Minister of Service Alberta and Red Tape Reduction.

Mr. Nally: Thank you, Madam Speaker. I rise to move third reading of Bill 38, the Red Tape Reduction Statutes Amendment Act, 2025.

Alberta is the best province in Canada at cutting red tape to promote economic growth, and we want it to stay that way. Reducing red tape helps Alberta businesses, taxpayers, and families save time and money that they can use to invest, to create jobs, and grow their business. Eliminating unnecessary regulatory and administrative barriers also supports opportunities for expanding skills and training for Albertans, driving innovation, diversification, and better government programs and services for everyone.

Madam Speaker, it's also important to mention that the work we do to cut red tape is not only done for Albertans but done because of Albertans. We receive suggestions at regular meetings with industry leaders in key economic sectors and from Albertans

through a dedicated page on alberta.ca. When we receive these recommendations, we review them for potential action, with an eye towards making high-impact, tangible changes that drive economic growth and better service delivery for everyone.

This strategy has helped us eliminate more than 209,000 regulatory requirements since 2019, and it's resulted in more than \$2.9 billion in cumulative savings for Albertans, Madam Speaker. [interjection] Thank you. I'm going to repeat that just in case anybody was looking at their phone or their shoes. This strategy has helped us eliminate more than 209,000 regulatory requirements since 2019, and it's resulted in more than \$2.9 billion in cumulative savings for Albertans. Yeah.

Furthermore, Madam Speaker, to ensure that red tape does not creep back in and undo the hard work that has been done, we've made important changes to the Red Tape Reduction Act last year, and we created a supporting regulation that ensures we hold ourselves accountable as a government. Ministries are required to off-set any new regulations by cutting other regulations. This way, regulatory requirements can be introduced to support new priorities while also maintaining an environment that continues to support business growth, investment, and improve service delivery.

Madam Speaker, our unwavering commitment to red tape reduction continues to bring us national recognition. In January we received a grade of A on the provincial red tape report card issued by the Canadian Federation of Independent Business, and that was the best mark in Canada. In that same month CFIB named Alberta as one of its two one-to-watch award recipients across Canada thanks to a new automatic yes policy framework that will empower government to shorten permit wait times.

Automatic yes very much represents a second front on red tape reduction, but we are very proud of the work that we have done on the first front. I have my colleague the hon. Member for Taber-Warner who started us down this path. I remember when that hon. member first brought red tape reduction to this House. I remember the members opposite were skeptical, but they're not skeptical now because they've seen the 209,000 regulatory requirements that we've eliminated, they see how we've made life better for all Albertans, and more importantly they've seen the \$2.9 billion in savings that we brought to Albertans.

Madam Speaker, Bill 38 is the ninth red tape reduction bill that we've brought forward since 2019. Every one of these bills has saved Albertans and Alberta businesses time and money and has made our province a more affordable place to live and to do business.

Bill 38 contains seven sets of amendments from five different ministries. Madam Speaker, this bill is unique not only for what it covers but who it helps. Bill 38 will help renters, landlords, postsecondary students, and those in apprenticeship programs. It will also help landowners along the Alberta-B.C. border keep tabs on their property borders and encourage future development where possible. I was very proud to introduce this bill on behalf of my department and my four other colleagues.

Today I'd like to thank all members for the healthy and fulsome debate that's taken place about this bill, and I look forward to future discussions about how we can make life easier for our province's job creators, our taxpayers, and our families.

Thank you, Madam Speaker.

The Deputy Speaker: The hon. Member for Edmonton-Rutherford.

Member Calahoo Stonehouse: Thank you, Madam Speaker. I rise today with a heavy heart and a deep sense of duty to speak against Bill 38, the so-called Red Tape Reduction Statutes Amendment Act, 2025. I say "so-called" because what is being stripped away

here is not red tape. What's being stripped away is accountability, oversight, and dignity, and, tragically, the lives and stories of young people who have already been failed so profoundly by the very system that is meant to protect them.

As a First Nations woman elected to this Legislature, I do not take the responsibility lightly. I carry with me the voices of young Indigenous children, their families, and our nations, who have lived for generations under systems that too often overlook them, sometimes until it's too late. I will not stand by quietly as this government attempts to erase even their memory by limiting who we investigate and how we report their deaths.

This bill amends seven different acts, but let's not pretend the heart of this bill isn't the damage it does to the Child and Youth Advocate Act. The most alarming change is that youth deaths, once reviewed up to the age of 24, will now only be reported on, investigated, or reviewed at the discretion of the advocate if that youth is 18 or 19. For those 20 and older it's silence. Nothing. No investigation, no reporting, no accountability.

8:50

What message does this send to young Indigenous children, young Indigenous people who've aged out of care? Let me be clear. When children age out of care, it is the most vulnerable time of their lives. When my daughter aged out of care, she was so afraid that she would have nothing, that she would have no one. When my son aged out, he was angry that he would have no home to live in; he would have no one to take him to a doctor's office. And now if something were to happen to them, there would be no one to talk about it. What this amendment tells Indigenous kids is that you're on your own. It's your life, your safety, and even if you die, you will not be worthy of public attention. This is the part that hurts.

Let's be clear. These are not faceless statistics. These are young children from our families who've often grown up in government care, whose lives have been shaped by the very decisions of this government. These children are your responsibility. They are still developing at that age, still struggling. When I think about my daughter and my son after they aged out of care, my daughter went on to university, but had I not adopted her when she aged out, who would have paid for her university? Who would have made her chicken soup when she was sick with a cold? Who would have gone to the hospital when she attempted to take her life? Who would have sat by her bedside when she gave up crystal meth and struggled with those demons of addiction?

Far too often when these kids end up out of care, they end up in a place where they are struggling, where no one loves them, where no one cares for them. And this government says it needs to reduce red tape. I have to ask: since when did the death of a child become red tape? The very use of this language is demoralizing. It's dehumanizing, and it's bureaucratic indifference cloaked in efficiency. Our families don't ever call for red tape reduction when their child dies in care. They call for answers. They call for change. They call for justice.

This is the truth about this bill. The majority of youth will be erased by this legislation. These are Indigenous children that we are talking about. As of December 2024 76 per cent of children in government custody in Alberta are First Nations and Métis. It's staggering. It's horrifying. It's a continuation of the colonial policies of the '60s scoop and the Indian residential schools, policies that tear our children from our families. They fail to keep our children safe, and then when they die, they are simply erased.

We know that most deaths in care or after care come from drug poisoning, suicide, or, sadly, violence. All of these deaths are preventable. These are not accidents; these are systemic failures. Bill 38 does nothing – nothing – to prevent the next generation of

young people from dying. In fact, it makes it more likely because it reduces the very tools we have to understand what went wrong.

In 2025 this government is failing First Nations on such a profound level. It is abhorrent what is transpiring, from the continued increasing number of apprehensions of children from families, placed into strangers' homes, often where children report to the advocate if they suffer abuse or neglect or isolation, and then the institutionalization. Sadly, more often than not children who age out of care often find themselves on the cold streets, and now this government will lock them away under the guise of recovery prisons.

In 2023 Alberta reported 88 deaths of children and youth in care. In 2024 that number was 83. Nearly half, 47 per cent, were 18 and older. That could have been my daughter or my son, as they both were adopted when they aged out. These are the exact individuals that the advocate may no longer be required to investigate. If this bill passes, we may never know what happened to them. We may never ask the hard questions, and no one can hold the system accountable if we don't know what happened.

Let's not forget. This government is also changing the reporting structure from every six months to once a year and not even requiring that the report be tabled in this Legislature or made public. How will we know when the children have died or how they died if they don't have to report or make it public? Not only are we investigating fewer deaths, we're reporting them less frequently, with less transparency, and with no obligation to share those findings with the public. This is a deliberate attempt to hide the truth.

Madam Speaker, I ask: why? Why would any government reduce the oversight of youth deaths unless it fears what the reports will reveal? The office of the Child and Youth Advocate has been doing critical work despite the underfunding, despite being understaffed. They have issued report after report calling on this government to provide real supports to youth transitioning into adulthood. They've warned us about the devastating impact on mental health gaps. They've warned us about the devastating impacts with addiction, poverty, and lack of housing support for the youth exiting care. And instead of listening, this government is trying to silence them.

Let me remind this House that in 2024 the Calling for Change report from the advocate highlighted 48 tragic cases: 47 children and youth died; one suffered a serious injury. Of those, over half had known issues with severe mental health, addiction, or both. Many were aged 18 to 22, before they could even dream of having a family, building a home, entering college or university, to do the things that all young adults should be doing, and now we are going to ignore the facts of their life and of their death. These children are not given the supports they need to be thriving, healthy children. They are not set up for success, and now this government wants to ensure we will never fully understand why.

Madam Speaker, let me speak plainly. You cannot prevent future deaths if you refuse to examine the past ones. You cannot improve the system if you weaken the very mechanisms designed to tell us what has gone wrong. You cannot claim to stand for children and youth when you remove oversight from the most vulnerable among them. This bill is not about cutting red tape; it's about cutting corners. It's about cutting the public out of the truth, and for Indigenous youth, it's another form of erasure.

As a First Nations mom, as a legislator, I have attended too many funerals, too many vigils. Too many families never get the answers of what happened to their children. I have watched our families carry grief that never ends because our children continue to die in a system that fails to protect them.

9:00

This bill does not make the grief easier; it makes it invisible. To this government, I say: do not ask us to accept invisibility. We are not statistics. We are not red tape. We are people. Our children matter, their stories matter, their lives matter, and their deaths matter. This Legislature has a moral obligation, not a political convenience, to ensure those lives are honoured with accountability.

If the UCP truly believes in reconciliation, if it truly believes in child welfare and transparency, then prove it. Withdraw this part of the bill, fund the advocate's office properly, expand oversight, listen to Indigenous voices, and stop playing politics with the lives of our children.

Let me close by reminding this House that we are judged not by how we treat the powerful but how we treat the most vulnerable. Right now vulnerable youth are crying out for support, for stability, for dignity, for love, for someone to stand up and say, "Your life matters. We will not let you be forgotten." So I stand here today as a Nehiyaw iskewew in this Legislature to say exactly that. We see you, we will fight for you, and we will not let this government erase you.

Thank you, Madam Speaker.

The Deputy Speaker: Are there others to join the debate? The hon. Member for Edmonton-Meadows.

Mr. Deol: Thank you, Madam Speaker. I rise to add comments to Bill 38, Red Tape Reduction Statutes Amendment Act, 2025. Before I say anything, I really wanted to thank my colleague the Member for Edmonton-Rutherford for sharing your stories and adding very powerful comments to this bill.

Red tape reduction. Looking at this bill, the portion of this bill proposed, it basically challenges the relevance of the ministry. It's not the very first time. I remember when the first bill was brought into this House by the former red tape reduction minister. The media asked questions about that omnibus bill, hundreds of pages, what the minister was proposing in that, and the minister said he didn't know, that you can ask the related ministries. This ministry itself is red tape to government business. First of all, there's nothing that cannot be done through the related ministries that this red tape reduction minister is trying to address.

On top of this, what this bill proposes is very sad. It's very sad to see. We have so many issues related to the deaths of our very youth and children in government care. That needs to be noted. Like, it's government care. It is not something else we are talking about, a nonprofit agency or something happening in the community. These concerning deaths are happening in the care of the government's own agency, and for the past some years the numbers of deaths being recorded are unprecedented. It's not only shocking to the concerned people, it's not only shocking to the people who are losing their loved ones, their children, their brothers, their family members; it is concerning to every human being who has a good heart, who can think.

The reason I'm saying this is that I spoke with someone who has been supporting Conservatives for a long time. He is actually working providing legal services at Alberta intervention services. He pulled me over, and he wanted to discuss government policy about this. I thought we were going to have a debate as I know that he's on the other side of the political spectrum, he's going to bring a different perspective. I was surprised to hear him say that the government policy is deliberate, ignoring the real issues, and it seems like they're trying to eliminate the race. These are not my

words; these are the words from someone who is passionately supporting Conservatives for a long period of time.

When we see the deaths – in 2023, 88 deaths; 2024, 83 notifications of deaths – we see that half of those deaths happening are youths over 18 years of age. It's sad to say that the majority of the youth are Indigenous youth.

The solution this government is providing in this red tape bill is taking away resources from the office of the Child and Youth Advocate of Alberta. They have been investigating, conducting and issuing a report, and what does this bill say? It is not required anymore. Instead of providing solutions and resources to improve services and oversight and empowering the office of the Child and Youth Advocate of Alberta, this bill simply says that it is not needed. Not only this; they're eliminating the services that already exist. It's shameful.

Madam Speaker, I strongly oppose this bill.

The Deputy Speaker: Any other members to join the debate in third reading on Bill 38?

Seeing none, would the minister like to close debate?

[The voice vote indicated that the motion for third reading carried]

[Several members rose calling for a division. The division bell was rung at 9:09 p.m.]

[Fifteen minutes having elapsed, the Assembly divided]

[The Deputy Speaker in the chair]

For the motion:

Amery	Johnson	Rowswell
Armstrong-Homeniuk	Jones	Schow
Boitchenko	LaGrange	Schulz
Bouchard	Loewen	Sigurdson, R.J.
Cyr	Long	Singh
de Jonge	Lovely	Stephan
Dreeshen	Lunty	Turton
Dyck	McDougall	van Dijken
Ellis	McIver	Wiebe
Fir	Nally	Williams
Getson	Neudorf	Wilson
Glubish	Nicolaides	Wright, J.
Horner	Nixon	Yao
Hunter	Petrovic	Yaseen
Jean		

Against the motion:

Boparai	Gray	Renaud
Calahoo Stonehouse	Hayter	Schmidt
Deol	Hoyle	Shepherd
Ellingson	Irwin	Sigurdson, L.
Eremenko	Metz	Wright, P.

Totals:	For – 43	Against – 15
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[Motion carried; Bill 38 read a third time]

Bill 48 iGaming Alberta Act

The Deputy Speaker: The hon. Minister of Service Alberta and Red Tape Reduction.

Mr. Nally: Thank you, Madam Speaker. I rise to move third reading of Bill 48, the iGaming Alberta Act. [interjections] Thank you. Thank you. Thank you.

Madam Speaker, this bill represents an important step towards making online gambling safer for Albertans. As I've said on several occasions, we know that we can't make gambling completely safe, but we know that we can make it safer, especially for the many Albertans who already gamble online. Right now estimates suggest that more than half of all online gamblers in Alberta are placing bets on unregulated sites, websites that are often operated from outside of the province and even outside of Canada. We know that Albertans who gamble on these illicit sites may not be as well protected as Albertans who gamble at regulated casinos or bingos or who buy lottery tickets or 50/50 tickets. It's a crazy world. In fact, they may not be protected at all as many of these unregulated sites do not offer the robust social responsibility or consumer protection tools that are required in regulated markets. As a result, Albertans gambling on these sites may face a higher risk of developing gambling-related harms or are placing bets without consumer protection mechanisms in place. We want to change that.

We already have a good example of how to integrate consumer protections and strong social responsibility tools into online gambling right here in our own backyard. Madam Speaker, Play Alberta is currently operating as Alberta's only legal iGaming platform. It launched in the fall of 2020 and is operated by Alberta Gaming, Liquor and Cannabis. Play Alberta is an excellent platform, balancing fun with social responsibility, and it's been very successful. Last year Play Alberta generated about \$235 million in net sales, an increase of \$42 million from 2022-23. Now, these revenues contribute to the \$1.5 billion in total gaming revenue that is sent to Alberta's general revenue fund, where it can be used to support important programs and services that Albertans rely on every day.

Madam Speaker, Play Alberta is a success story, but it's a bit sobering to consider that it's only capturing up to 45 per cent of Albertans who gamble online. That's why we're proposing to establish a regulated market where private operators are required to register and follow rules that will require them to put safeguards in place that better protect Albertans.

Further, Madam Speaker, there are revenue considerations. Right now the revenue being generated on these unregulated sites is going straight out of Alberta and often out of the country. This is revenue that could be reinvested into our province, where it could be used to benefit our Indigenous communities. In fact, all Albertans could benefit. But let's make this clear. This bill is not about generating new revenue. We're not trying to grow the market or create new gamblers in Alberta. Our goal is to implement a regulated market for private companies to legally operate online gambling sites where safeguards are in place, consumers are protected, and market integrity and social responsibility are top of mind. If approved, the iGaming Alberta Act will be the first step towards achieving this goal.

9:30

With it, we will create a new provincial corporation called the Alberta iGaming corporation to conduct and manage iGaming operations in the private market. We would also designate Alberta Gaming, Liquor and Cannabis as the iGaming market regulator and establish appropriate government oversight to support the integrity of this market.

As with the liquor and cannabis sectors, iGaming in a private marketplace means ensuring appropriate regulatory oversight to make sure that regulated operators are acting responsibly and, perhaps more importantly, that all Albertans are better protected. That's exactly why we will require all iGaming operators to register to be able to operate in Alberta, and it's why we'll require that all registered operators follow rules, including rules about advertising

that will be set out in regulation, policy, and standards later this year.

Better protecting Albertans, especially vulnerable Albertans, from experiencing gambling-related harms or placing unsafe bets from a consumer protection standpoint is our top priority. I'm happy to let you know that one of the protections we will bring to this marketplace if the legislation passes is a centralized self-exclusion platform. This platform will provide online gamblers who want to take a break from gambling with the ability to block or exclude themselves from being able to access regulated gambling sites in one convenient place, just as Albertans who choose to gamble on Play Alberta or at Alberta's casinos and racing entertainment centres can already do.

So there you have it, Madam Speaker. Once again, I want to say how proud I am to be able to talk to you about our iGaming legislation today. We have worked hard to set up a framework to strike a balance between increasing consumer choice among regulated iGaming operators and taking steps to ensure our standards for social responsibility and public safety are met. More details on key regulations and policies related to revenue, consumer protection, and specific social responsibility policies will be shared later this year following further engagement. I remain proud of this bill, and I'd like to thank all members for the healthy and fulsome debate that's taken place.

Thank you.

The Deputy Speaker: The hon. Member for Edmonton-Highlands-Norwood.

Member Irwin: Thank you. Oh, boy. Thanks, Madam Speaker. Yeah. It is an honour to rise and speak to Bill 48, the iGaming Alberta Act. You know, I will speak a little bit to this bill fairly briefly, but I just want to get on the record that I am disappointed in – the minister had much, much enthusiasm for Bill 48. Got to respect anyone who's keen about a piece of legislation. But seeing their unwillingness to accept our amendments on the previous bill, Bill 38, red tape, especially after hearing the incredibly compelling debate from my colleague the Member for Edmonton-Rutherford, I just needed to mention that that was pretty hard to witness and then seeing the government all vote in support without considering the real lived experiences of Indigenous folks in this province.

Anyways, I digress. Let me speak to Bill 48. You know, I think there are a couple of things that I want to get on the record. I've talked in this Chamber a lot over my six years as an MLA about my teaching background, teaching in rural Alberta. I mostly taught senior high social studies, but sometimes when you're at K to 12 schools – and the second school I was at was in Forestburg, Alberta, where I was a vice-principal – you've kind of got to fill the timetable a bit. So I had the honour – any teachers out there watching will laugh at this – of teaching junior high health. You might say: MLA, what does that have to do with any of this? Well, I remember distinctly that when teaching junior high health, we talked about addictions.

I do remember bringing in gambling as an example. I think it's really critical that young people, especially today, I mean, even when I was teaching – gosh, I think I taught 15 years ago now. It ages me a little bit. But especially now in this world, this digital world where young people have so much access to the Internet, I worry deeply about a rise in gambling addictions and a rise in – I guess I worry about the potential lack of education and supports because we know, everybody in this Chamber knows that that education needs to start young.

Bill 48 doesn't reference regulations, rules, or policies to address the potential harm or to mitigate the impact of greater advertising

exposure on children, young people, and any Albertans, in fact, any vulnerable Albertans who are at risk from gambling activity. The teacher in me and the legislator in me wants to get on the record that education is going to be critical, and I really hope that the minister takes that to heart and works with the Minister of Education to ensure robust curriculum.

I mean, gosh, it's hard to put my faith in this government on the issue of curriculum when we've seen how terribly they've managed curriculum in the past. I've spoken about it. After my teaching career, after I was vice-principal in Forestburg, Alberta, I came and worked for Alberta Education in curriculum. One of the things I was most proud of was just how under consecutive PC governments I worked under, consecutive PC Education ministers, and then the NDP, the Minister of Education, now the Member for Edmonton-North West – I was proud of how robust a curriculum process we had in place and how many tens of thousands of stakeholders we engaged across the province: curriculum experts, experts in curriculum design, experts in key areas, students, teachers, parents, and just a whole heck of a lot of stakeholders.

I know how well curriculum was being developed under previous governments, but I've not seen that same work under the UCP government. It's not to slag any of the public servants. I know many of them, and they're doing great work, but, you know, when you're getting a lot of top-down direction from the minister and, in fact, the Premier, it's a lot harder to do that important work.

So I just really want to get on the record to urge the ministers to work together to really, really consider how young people can be taught and can be given the skills and the resources they need to grapple with addiction and to know, as I mentioned earlier, to be able to mitigate the impacts of that.

Speaking of mitigating the impacts, I want to talk a little bit about harm reduction because our government, or soon-to-be government, our Official Opposition, just previously ... [interjection] Note the Government House Leader laughing. I will try to recall that when the election comes.

Mr. Schow: We keep receipts.

Member Irwin: Pardon me?

Mr. Schow: We keep receipts.

Member Irwin: Anyways. If that member – you know, I haven't heard him join debate too much lately, but if he'd like to join debate, I would be very happy to hear it. iGaming does have a connection to his portfolio, so I'll wait for that.

Our Official Opposition put forward an amendment that would have essentially created a harm reduction program to teach people who gamble the risks of gambling and gambling addictions and try to prevent such addiction from developing. Research shows, and the body of research is clear out there, that especially young men are impacted through sports betting, and that's one of the most common forms of gambling that we see out there. Again, there's a body of research to support that. I think we can reasonably say, you know, that it's still pretty early. There's only been, I guess, probably a couple of decades of online gambling, so we don't even know, necessarily, the long-term effects.

We put forward what many would argue would be a very well-thought-out and well-reasoned amendment, and – you guessed it – did this UCP government support that amendment? No. You know, not even my colleagues are listening to me. No, they did not. Gosh. No, they did not. I don't mean to joke; it is incredibly serious. But I suppose we shouldn't be surprised that this government that has railed in this very Chamber against harm reduction would be

opposed to harm reduction even when it impacts the young people, the young men in particular, of our province.

So it is with grave concern that I get on the record today talking about the iGaming act. Again, I mean, I can acknowledge the economic impacts – I absolutely can – but without a robust plan of harm reduction, without a robust plan of supports, particularly for young people so that they know how to deal with and how to address and recognize the signs of gambling addiction, I worry greatly that this bill will have unintended consequences.

With that, I would like to end my comments. Thank you, Madam Speaker.

The Deputy Speaker: Any other members wishing to join the debate for Bill 48 in third reading? Seeing none.

[Motion carried; Bill 48 read a third time]

9:40

Government Bills and Orders Second Reading

Bill 54

Election Statutes Amendment Act, 2025

[Adjourned debate May 6: Mr. Dach]

The Deputy Speaker: The hon. Member for Edmonton-City Centre.

Mr. Shepherd: Thank you, Madam Speaker. I appreciate the opportunity to rise and speak to Bill 54, the Election Statutes Amendment Act, 2025, a very innocuous name for an absolutely not innocuous bill. You know, it's interesting. The government's news release for this bill had the title Improving Consistency and Fairness in Alberta's Democratic Processes. I could not imagine a more funhouse-mirror, Orwellian description of this bill. Dr. Jared Wesley, political scientist at the University of Alberta, whose opinion I would trust far more than any members of this government in analyzing this bill, called it the most comprehensive set of antidemocratic reforms in Alberta's history.

Mr. McIver: That's kind of harsh.

Mr. Shepherd: The Minister of Municipal Affairs says, "That's kind of harsh." Well, I can tell him that Dr. Wesley is not a man given to hyperbole, unlike many members of this government, certainly the minister himself at times.

Dr. Wesley gave this careful consideration. He has put out a thorough analysis of this bill, and he agrees that this is not a bill about making things better for Albertans, about fairer elections. This is a bill about this government tilting the playing field for itself. Indeed, this is a government that has put so many thumbs on the scale, they've had to start using their toes.

You know, we take a look at this, Madam Speaker, and the changes in this bill are going to have profound impacts on our elections here in the province of Alberta. They're going to disenfranchise voters. They're going to pile in dark money. They're going to make it harder for Albertans to be able to vote. Now, these members may choose to laugh at that. They think it's amusing to play around with election laws to try to advantage themselves.

An Hon. Member: We're laughing at you.

Mr. Shepherd: Oh, they're laughing at me, not with me, Madam Speaker. Incredible maturity on the government benches tonight on an issue of great importance to Albertans. I would encourage those members to stand up and debate this bill if they are so fond of it if they think they can.

Let's talk about the bill, Madam Speaker. Now, the Premier spent a bunch of time this year doing her little cocktails-and-canapés tour of the United States. She said that was to influence U.S. lawmakers, all the far-right Republicans she sat down with, to block tariffs in Canada. Well, we know that didn't work. The President went ahead with those anyway, but maybe the influence is actually running the other way. What Dr. Wesley says is that this bill marks "another step in the Americanization of Alberta's democratic institutions . . . the latest in a long list of democratic transgressions in this province" under this government. Let's talk about a few of them.

Now, the Premier just recently did an interview. She said that they went out and they consulted over the last year; Bill 54 reflects what they consulted with Albertans on. Let's talk about what's in here, Madam Speaker. When they consulted, when the Minister of Municipal Affairs, in fact, consulted with Albertans about vouching, the requirement of voter IDs, you know what Albertans told them? Forty-six per cent told them they opposed removing vouching. They opposed the requirement of photo ID. Every single written submission that minister received opposed removing vouching. What does Bill 54 do? It removes vouching. It makes it harder for individuals to vote. That is in particular going to impact racialized communities, Indigenous voters, Black voters, new voters in Alberta, folks who live in rural areas, seniors.

The Minister of Municipal Affairs, when we talked about this on his changes to the municipal elections last year, something they haven't even actually let play out to see what that impact might be before they race ahead with changing provincial elections, said that he would make it so easy to get photo ID. He was going to make it possible to get it instantly. Madam Speaker, the minister hasn't done a thing. The only thing they have done is open two navigation centres which exist for the point of getting ID to folks who are living without housing. There's one in Edmonton; there's one in Calgary. The minister's contention is that Indigenous voters in northern Alberta who do not have the ID they need should drive to Edmonton to get it. That senior that is living outside of Hanna, if she doesn't have voter ID, should drive to Calgary to get it at the navigation centre there. That is what the minister has done. That is the sweeping change he has made. The minister believes that if they can't do that, they should be stripped of their right to vote. That is what's put forward in this legislation.

The other thing that this bill does is that it drastically decreases the opportunities for Albertans to vote. Now, when the minister did his consultation on municipal elections, 87 per cent of the people who responded said that they supported advance voting and 60 per cent the ability to vote at any polling station. How many opposed? Twenty-two per cent. Three times as many Albertans told this minister, this government that they value the ability to vote in advance, the ability to vote at any polling station.

What do they do in Bill 54? They take it away. When the Premier says that they consulted on changes to make to the Election Act, it seems they consulted to find out what Albertans want so that they could do the opposite. Let's be clear, Madam Speaker. We're not just talking about a whim here. We are talking about one of the most fundamental rights an individual has, the right to vote for the individuals that will represent them or, in the case of this government, who will choose not to represent them. This is not something that should be taken lightly. This is why Dr. Wesley accurately says that Bill 54 is antidemocratic, stuffed to the gills with American-style voter suppression.

One of the other things in this bill is that it brings back the ability for corporations, unions to make political donations, something that our government changed when we were in power in 2015, which the Minister of Municipal Affairs voted for, spoke in favour of it at the time. But now they are bringing it back. You know, one of the

reasons we banned that, Madam Speaker, is because under Progressive Conservative governments what we saw was corruption. What we saw was abuse of donations.

Look back at 2012. You know, Conservative governments seem to have a thing for scandals and hockey, Madam Speaker. In 2012 the then Progressive Conservative government, of which the Minister of Municipal Affairs was a member, the Progressive Conservative Party at the time received a donation of \$30,000 from the Katz family and the Katz Group. Now, the thing was that they didn't declare – well, pardon me. Actually, it was a donation of \$430,000. Pardon me. Let me make sure I get the story straight: \$430,000, but the thing is that it came in \$30,000 chunks but not really in \$30,000 chunks. It actually came out later that it was a single cheque for \$430,000 that was delivered to the Progressive Conservative Association of Alberta. Then later they took a list of names of individuals from the Katz family and the Katz Group and divided it up into the chunks so it could get under the line for the maximum amount of donations allowed. That's how Conservative governments operate in this province.

Now this government is opening the floodgates to be able to start to do that again so that an individual that has more money, well, they start another numbered company. Add another numbered company to the list; you can donate another \$5,000. Just keep stacking that up. That is a decision this government is making to try to tilt the deck, put that thumb on the scale ahead of the next election, and put more dark money in.

9:50

Another situation that we saw under Conservative governments: dozens of municipalities, universities, colleges ended up making illegal donations because, again, under the Progressive Conservative Association of Alberta they loved to lean on municipal officials, university administrators, other folks to make donations to their party. Now, they couldn't do that legally, but they did. They paid for tickets to their fundraisers through their university, through their municipality. That had to be called out. The elections officer had to announce a wide range of fines to address this. That is what we had under Conservative governments before we tightened up the rules, widespread corruption and flouting of those rules to flood more dark money in. That is what this government is choosing to do again with Bill 30 – Bill 54; pardon me. Getting confused with the \$30,000 cheques and everything else that's involved here.

This bill bans vote tabulators. Now, much like voter fraud doesn't exist in the province of Alberta really, Madam Speaker – the government is saying, you know, that we have to bring in photo ID, require it, potentially strip people of their vote because of voter fraud. The fact is that in 10 years, millions of votes cast: seven instances – seven – out of millions of votes where there is any suggestion that anything went wrong, that Elections Alberta found any issue. Seven out of millions. Yes, minister of agriculture.

Mr. Sigurdson: Seven too many.

Mr. Shepherd: "Seven too many," says the minister of agriculture. How many voters in Alberta should be stripped of their vote because of seven out of millions, Madam Speaker? How many? Does the minister want to answer that? I will tell him. One person being stripped of their vote is too many for something that has had no impact on any election in the province of Alberta, but this government is racing ahead.

Now they are banning vote tabulators. Again, Madam Speaker, no example of any instance where there has ever been an issue with a vote tabulator in the province of Alberta, nothing documented, but they are banning them. They are going to force every municipality

in the province to hand count ballots this fall at a cost of millions of dollars to Alberta taxpayers. They are going to spend millions of Albertans' dollars to force every ballot in the next provincial election to be hand counted because of conspiracy theories, because of people who watch too many YouTube videos about Donald Trump talking about Stop the Steal and Dominion voting machines. That is what this government is basing its policy on, what they are going to spend millions of dollars on through Bill 54.

I suppose you could call it perhaps job creation, Madam Speaker, because they're going to have to hire hundreds and hundreds of Albertans because they're giving them a time limit. They have to hand count all of those votes within 12 hours. I hope they're starting to advertise for those positions now because they're going to have to fill in a lot to get this done.

Again, that is not about making elections more transparent, Madam Speaker. That is not about making things more efficient. That is not about doing things fairer for Albertans. It is about a government that is putting its political interests, playing to its extreme base, trying to tilt the tables in its favour. That is what Bill 54 is, blatantly, clearly.

This bill also, as we have been hearing this week – in my last couple of minutes I'll just touch on this quickly. Of course, this is what the government is using to stoke continuing conversations about separation. This government wants to pick a bigger fight with Ottawa. This government needs a distraction from the fact that there are multiple investigations ongoing into one of perhaps the biggest cases of corruption in Alberta government history. To distract from that, they are cutting in half the number of signatures required to force through a referendum on Alberta separation from Canada.

Now, to be clear, every time we have one of these referendum votes, Madam Speaker, or one of these recall votes, for which they are also lowering the threshold, that will come at a cost of thousands if not hundreds of thousands of dollars to Alberta taxpayers. There's no evidence that this yields better democracy. There's no evidence that this will bring any forward, but it certainly will serve the Premier's purpose, which is to continue to try to distract Albertans, and now is creating a massive issue with First Nations in the province of Alberta.

The Deputy Speaker: The hon. Member for Edmonton-Gold Bar.

Mr. Schmidt: Thank you, Madam Speaker. I'm pleased to rise and offer some comments on Bill 54, the Election Statutes Amendment Act, 2025. I, first of all, want to extend my thanks to my friend from Edmonton-City Centre for his concise summary of our concerns with the bill. Certainly, I share a lot of the concerns that the Member for Edmonton-City Centre raised with respect to opening the floodgates to dark money, to eliminating vouching for people without identification, to eliminating vote-anywhere clauses in the Election Act. All of those are concerns that I have with the bill as well.

But I want to focus my comments this evening with respect to the changes to the Citizen Initiative Act, the Recall Act, and the Referendum Act because these have been the focus of quite a lot of public commentary over the last couple of days, and I thought I would add something to that debate. What this bill does is that it amends the Citizen Initiative Act to reduce the threshold for citizen initiatives from 20 per cent of all registered voters to 10 per cent of votes cast in the previous election. I just had a look at the results of the 2023 provincial election just to see how many signatures are required for initiating a citizens' initiative under the current regime and, I guess, under this proposed regime that's here in Bill 54.

Under the current legislation with 20 per cent of all registered voters being required to sign on to a citizens' initiative, that

would have required 573,547 signatures because 2,867,737 voters were eligible to vote in the last provincial election. Now, according to my calculations 1,706,304 people actually voted in the 2023 provincial election, and under the proposal that we are discussing here tonight, only 10 per cent of those people who actually voted would be required to sign on to a citizens' initiative. You calculate 10 per cent of 1,706,304, and you get 170,630.4 people. Madam Speaker, I leave it up to people smarter than I to figure out how they're going to get .4 of a signature, but there we are.

Currently the state of the Citizen Initiative Act requires 573,547 signatures. Under this legislation, if it should pass, you only need 170,630 signatures. That's a difference of 403,000, give or take a few hundred, Madam Speaker. That's a significant difference in the number of signatures required to generate a citizens' initiative. You know, 573,547 is approximately half of the population of the city of Edmonton, the greatest city in the province of Alberta; nay, the entire country.

10:00

Mr. Ellingson: Hey, there are Calgarians in the Chamber.

Mr. Schmidt: Yeah, there are Calgarians in the Chamber, and that's why I'm saying this. Like, Edmonton is the greatest city in the province of Alberta.

But under this proposal only 170,630 people would be required to sign on to a citizens' initiative, which is approximately the combined populations of Red Deer and Lethbridge, so a significant reduction in the number of required signatures to generate a citizens' initiative.

And now, just because I like to have a little bit of fun with numbers, Madam Speaker, and because my whip has told me that I have 15 minutes to fill: this proposal also extends the signature collection period for citizen initiatives from 90 to 120 days, which gives petitioners more time to gather support. If you look at the current legislation, to get 573,547 signatures in 90 days, you would have to average 6,372 signatures a day. That's a lot of ink. I know the President of the United States was recently on television saying that he thinks that only five pencils is required per person. I hope that he didn't mean somebody who was collecting signatures for a citizens' initiative in Alberta because at 6,372 signatures a day you might well exceed the allotment that the President has given you for pencils.

Under this proposal, Madam Speaker, to collect the 170,630 required signatures for a citizens' initiative in 120 days, you would only need to collect 1,422 signatures a day. That's approximately 20 per cent of the required number of signatures per day. You could imagine that, you know, people who would have to run from door to door to collect signatures under the current regime could casually stroll from door to door and pet the cats and dogs that they meet along the way.

Mr. Sigurdson: Sounds like a good time.

Mr. Schmidt: I'm dying to know if the minister of agriculture is a cat person, a dog person.

Mr. Sigurdson: Dog person.

Mr. Schmidt: He's a dog person. Okay.

Mr. Sigurdson: Two dogs.

Mr. Schmidt: Two dogs.

A significant reduction in the requirement for signatures in generating a citizens' initiative, which I think is exactly the point.

I also had a look at the Recall Act changes, because this bill changes the threshold for successful recall petitions from 40 per cent of all registered voters to 60 per cent of actual votes cast in the electoral division.

Madam Speaker, to delight the crowd, I engaged in a thought experiment of generating a recall petition in Edmonton-Gold Bar. In the last election there were 22,463 people who cast their votes. There were 35,481 eligible voters, and I want to express my sincere thanks to the 15,508 people who cast their votes for me to send me back to this Chamber. But, you know, maybe they've been spending time with the Minister of Tourism and Sport and think that I'm no longer fit to do the job and would be interested in generating a recall petition. Under the current regime 40 per cent of the eligible voters would equal 14,192 signatures. Under this proposal that number falls to 13,477.8 signatures. That's a difference of 714 fewer signatures required to generate a recall against the Member for Edmonton-Gold Bar, Madam Speaker. I suspect that that might make the attempts to recall the Member for Edmonton-Gold Bar a little more enticing, just because of the reduced effort that will be required under this proposed legislation.

Again, you know, because I really enjoy numbers, Madam Speaker, and the buzzer has not yet gone off, unfortunately, this bill extends the petition submission period from 60 to 90 days, providing more time to collect signatures. Under the current legislation in order to collect 14,192 signatures in 60 days, you would have to average 158 signatures a day. Under this proposed legislation in order to collect 13,477.8 signatures, you would only have to collect 149 signatures a day. So a significant reduction of nine fewer signatures a day that are required to generate a recall petition against the Member for Edmonton-Gold Bar.

I suppose, Madam Speaker, MLAs should be grateful that the bill adds a response statement option for MLAs facing recall. You know, I'll just say that out of an abundance of caution I've already prepared my response statement. I certainly hope that there isn't a word limit or any kind of editing requirements that will be forthcoming in the legislation because I don't want to go back and redraft this. I suppose that because the government is proposing to reduce the number of signatures required to generate a recall initiative, the likelihood of these things happening goes up, so offering MLAs a chance to draft their responses in response to these recall initiatives is probably a good thing in case MLAs want to defend themselves.

With the remaining time, Madam Speaker – how much time do I have left?

The Deputy Speaker: Two and a half minutes.

Mr. Schmidt: Two and a half minutes? Oh, man.

I have a bunch more numbers that I could go over. What's interesting is that I'm not sure if *Hansard* actually records them as digits or if they record them as words. I guess I'll have to find out tomorrow, Madam Speaker, whether or not somebody wrote the number 2,867,737.185 as digits or if they had to use the English words to write that out. Regardless, I'm sure they're very grateful for the generative software that they probably use to transcribe these things and don't have to sprain their wrists rewriting that number over and over again.

Anyway, I hope that all members of the House have been enlightened by this extensive discussion of the numbers required for a citizens' initiative and recall initiatives under this proposed legislation and take these learnings and vote against this bill. Thank you.

The Deputy Speaker: If you ever need a fake beeper in the future, let me know.

The hon. Member for Edmonton-South.

10:10

Member Hoyle: Thank you, Madam Speaker. You know, it's always an honour to rise in this Chamber to speak; however, it is with great frustration and disappointment that I have to rise and speak to Bill 54, Election Statutes Amendment Act, 2025. What we're seeing with this UCP government's Bill 54 is what I can only describe as contempt for our democratic institutions and systems. It is extremely disappointing to see this level of political overreach that this UCP government continues to exhibit, which knows no bounds.

We continue to see the UCP government erode away the electoral processes that keep our systems above reproach. One must assume that such overreach as this is likely only for their political gain, feeding into the narrative of far-right extremists and a fringe base. We've seen this government do this last year with bills 18, 20, 21, massive attempts to consolidate power and authority in the hands of the Premier and cabinet. Like those bills, Bill 54 is an attack, a direct attack on our democracy, and it's authoritarian in nature without doubt.

[Mr. van Dijken in the chair]

The Premier and the UCP government are looking at every corner of this province to see what they can get their hands on: pensions, police reform, health care, schools, local councils, and any dollars spent anywhere in this province and any decision made by anyone, everything, and that includes making it harder for Albertans to have their voices heard through elections. Bill 20 did this by requiring an individual to be on the permanent voter register and have a valid voter ID to vote. It also removed the ability to vouch for someone who wants to vote but doesn't have ID.

We know that such strict regulations will no doubt have grave impacts and will particularly disadvantage a number of folks in this province: racialized folks, Indigenous, Black communities as well as those who are new voting Canadians, who may not even be aware of what's new and what was old and what the changes are. I hope to see this being promoted, really, through Alberta so that people know. You know, seniors are used to having tabulators in their residences, where they have easy access to voting. Folks with accessibility challenges, those who are low income, facing houselessness: I mean, the list goes on. All of these folks are Albertans, too. They deserve and do have the same right to cast their ballot as any other Albertan, and to deny members of these communities that right is abhorrent and shameful rhetoric from the members opposite.

Oh, but wait, Mr. Speaker. We're not done. Bill 54 takes this much further by banning electronic tabulators; requiring unofficial vote counts to be completed within 12 hours of polls closing, putting extra pressure, might I say, on election workers and officers who are already under strain in the current system we have, which could likely lead to more errors; finally, the elimination of the practice of vouching for someone at a polling station altogether.

This Bill 54 seems to be a page right out of President Trump's playbook, which isn't surprising given how much cozying up the Premier did not only to an erratic U.S. president but to his far-right cronies. Does this UCP government have any idea or even care how many Albertans could be denied the right to vote in the next general election because of this Bill 54? The number could be anywhere from 10,000 to 50,000 eligible voters. All to solve a problem that doesn't exist by making it impossible for voters to vouch for people they already know at a polling station.

The Minister of Justice even had the nerve to say that Bill 54 changes are to strengthen public trust in the integrity of Alberta elections. I'd like to know: can the members opposite provide examples of folks who were ineligible to vote who fraudulently cast ballots through vouching? If so, is this a significant number? I think they'd be hard pressed to find people because we have electoral processes in place that ensure our elections are legitimate, Mr. Speaker.

Intentional or not, creating the perception that voting is difficult will make certain people less likely to make the effort to cast their ballot. The strength of our democracy rests on our ability to ensure that every voice has an opportunity to be heard. All Canadians and Albertans should have the freedom to exercise their voting rights, and that means the UCP government should be providing multiple options of access to voting, not reducing them. We need this UCP government to be active, accurate, proactive when it comes to preserving the openness of our voting process.

My colleague from Edmonton-City Centre mentioned political scientist, researcher Dr. Jared Wesley, and I'm going to quote him. Dr. Jared Wesley said:

like their Republican counterparts, the UCP is solving a problem that does not exist, with the likely consequence (and perhaps intent) of reducing participation among demographics less likely to support them.

This amounts to the government choosing its voters, not vice versa.

All of these measures feed conspiracy narratives surrounding election integrity, once again sowing baseless doubt in the sanctity of proven election processes.

It is beyond troubling that the UCP would suggest that our elections are not trustworthy and at risk for fraud. It throws our entire electoral process into disrepute and amounts to nothing more than accepting conspiracy theories. Shame on this UCP government. Shame on them for taking every step they can to make it harder for Albertans to exercise their democratic right to vote.

You know what, Mr. Speaker? With all the corruption and scandal that has marred this UCP government, it is not surprising they're doing everything they can to cling to power and pull the wool over Albertans' eyes. But Albertans will not stand for this.

Bill 54 prohibits the use of vote counting machines or tabulators across the province. While automation can improve efficiency, the political context surrounding this change cannot be ignored. Trump Republicans have spent years undermining public confidence in election technology, falsely alleging that machines were rigged and hacked to steal the 2020 election. These manufactured doubts fuelled attacks on electoral legitimacy in the United States, and the UCP's banning of tabulators risks creating similar opportunities for conspiracy theories to take root, Mr. Speaker. In short, this measure decreases efficiency and reinforces unfounded doubts about the integrity of our elections here in Alberta, precisely the opposite of what the government says it wants to achieve through this Bill 54.

We here in Alberta are privileged to have access to a highly democratic, legitimate system, which is not the case in many parts of the world. We do not have a rampant problem with voter fraud in Alberta. In this Chamber we work with facts, we work with evidence, and we are pragmatic on this side of the House. We do not and should not operate under the assumption of hare-brained ideas. But here we are. We're debating these hare-brained ideas because the Premier is letting them take root and giving them space to grow.

An equally problematic part of Bill 54 is lowering the threshold for citizen-led referendum to 10 per cent of people who voted in the last election and stretching the duration of collecting those signatures to 120 days from 90, effectively opening the door for

conversations on Alberta separatism, Mr. Speaker. One hundred and seventy-seven thousand people: that's roughly 3 and a half per cent of Alberta's population. It's also the number of signatures that would be needed to force a separation referendum designed to take those 5 million people and their land out of Canada.

10:20

Mr. Speaker, Albertans are dealing with real problems every day. They can't afford to put food on the table, keep the lights on, pay for rent or their mortgage, deal with one of the highest inflation rates in the country. They pay some of the highest utility, auto insurance rates. They can't get a family doctor. They can't get emergency care when they need it, how they need it in ERs. They can't find good-paying jobs. Their kids are in overcrowded schools. All of these issues and the Premier and this UCP government want to talk about separation. They want to pick fights with Ottawa. They want to sow mistrust. They want to divide us. It's abhorrent.

Albertans are proud to be Canadian, and no matter how much the Premier wishes otherwise, the Premier is using disgusting political games to rile up her extremist base.

She's aware, and she should be, that the treaties signed between First Nations and the Crown are constitutionally protected international agreements that cannot be unilaterally changed by provincial governments. Under treaties 6, 7, and 8 vast areas of Alberta are held in trust by the Crown for the benefit of treaty First Nations, not as property of provincial governments, and these treaty territories predate Alberta's entry into Confederation in 1905. These lands were never ceded nor surrendered.

The Premier has tried to play down what Bill 54 really means by saying that any Albertan could put any idea forward on any topic. It's time for the Premier to stop pretending it's a citizen-initiated process. It was quite literally the day after the federal election delivered a fourth consecutive Liberal government that this UCP government tabled Bill 54 and made it far, far easier for activists, a fringe minority, to put Alberta's existence within Canada on the ballot for voters. We are at a time of intense division and mistrust. Instead of doing the right thing, calling for unity and collaboration, the Premier is digging her heels in and stoking fear to serve her own political agenda.

Mr. Schow: Point of order, Mr. Speaker.

The Acting Speaker: A point of order has been called.
The Government House Leader.

Point of Order Imputing Motives

Mr. Schow: Thank you. I rise on 23(h), (i), and (j). I hate to interrupt the member opposite in what was clearly a very impassioned speech, but to suggest that the Premier is deliberately stoking fear, Mr. Speaker, is clearly attributing false motives to the Premier. There have been a number of references in this speech to the Premier associating herself with an extremist base, which has been ruled as a point of order in the past. I know the hour is late, but it doesn't mean that the rules no longer apply. I would ask that that member certainly improve the level of debate that we're engaging in this evening. That clearly is a point of order. I think it's ridiculous that the member thinks that's appropriate for this Chamber.

The Acting Speaker: The Opposition Deputy House Leader.

Mr. Shepherd: Thank you, Mr. Speaker. I would disagree with the hon. Government House Leader. This is not a point of order. It's a

matter of debate. He raised the issue of implying motivations. The member is not implying any motivation. She is simply noting what the Premier is doing. She is expressing her opinion about what these actions of the Premier are. She is not opining in any way on what the Premier's motivations are in doing so. When she says the Premier is stoking fear, that is her analysis of the behaviour or the actions that are being taken by the Premier and this government through Bill 54, again, not implying what the particular motivations are of the Premier in doing so but simply noting what is happening.

I'll give it to you for your ruling, Mr. Speaker.

The Acting Speaker: Thank you for both of your submissions.

I do not believe this is a point of order at this time. It is a matter of debate. It is a discussion that's very close to the edge of implying motive, so I want to encourage the member to move forward in her debate with caution to ensure that we are able to exist in this Chamber under a good level of decorum.

The member can proceed.

Debate Continued

Member Hoyle: Thank you, Mr. Speaker. Through Bill 54 the UCP is making the everyday lives of Albertans infinitely harder, but on this side of the House we know that the vast majority of Albertans do not want this bill and see through these political games. Even if the consequences are dire, the UCP claims Bill 54 is about democratic renewal but it's really about manufacturing a sovereignty crisis days after a federal election.

Albertans are proud Canadians who value their place in our federation while expecting fair treatment and respect for provincial jurisdiction from Ottawa. Instead of creating mechanisms to divide us from Canada, we need to strengthen Alberta's position within Confederation. We should focus on collaborating with other provinces on issues of mutual concern rather than isolating Alberta through divisive sovereignty rhetoric.

Bill 54 is meant to divide us, Mr. Speaker. The Premier and this UCP government should be absolutely ashamed of themselves for bringing this terrible bill forward, in my opinion. I stand firm in opposition to Bill 54.

Thank you.

The Acting Speaker: Are there any other members wishing to speak to Bill 54? Seeing none, I am prepared to call the question. The hon. Minister of Justice to close debate. That is waived.

[The voice vote indicated that the motion for second reading carried]

[Several members rose calling for a division. The division bell was rung at 10:26 p.m.]

[Fifteen minutes having elapsed, the Assembly divided]

[Mr. van Dijken in the chair]

For the motion:

Amery	Johnson	Pitt
Armstrong-Homeniuk	Jones	Rowswell
Boitchenko	LaGrange	Schow
Bouchard	Loewen	Schulz
Cyr	Long	Sigurdson, R.J.
de Jonge	Lovely	Singh
Dreesen	Lundy	Stephan
Dyck	McDougall	Turton
Ellis	McIver	Wiebe
Fir	Nally	Williams
Getson	Neudorf	Wilson

Glubish	Nicolaides	Wright, J.
Horner	Nixon	Yao
Hunter	Petrovic	Yaseen
Jean		

Against the motion:

Boparai	Hayter	Schmidt
Calahoo	Stonehouse	Hoyle
Deol	Irwin	Shepherd
Ellingson	Metz	Sigurdson, L.
Eremenko	Renaud	Wright, P.

Totals:	For – 43	Against – 14
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[Motion carried; Bill 54 read a second time]

Bill 55

Health Statutes Amendment Act, 2025

[Adjourned debate May 6: Ms Schulz]

The Acting Speaker: The hon. Minister of Environment and Protected Areas has 15 minutes left to speak. That's waived.

Are there any other members wishing to speak to Bill 55, Health Statutes Amendment Act, 2025? The Member for Calgary-Varsity has risen to speak.

Dr. Metz: Thank you very much, Mr. Speaker. I'm pleased to speak to Bill 55, the Health Statutes Amendment Act, 2025. In particular, I'm going to be talking to part 2.2, which starts on page 88, which talks about the operation of approved hospitals. The reason that I'm talking about this is because this section really brings in the option of private hospitals.

Canada has a single-payer, publicly funded health care system. Government is currently the sole payer for hospital and physician services, which are covered under each of the 13 provincial and territorial publicly funded insurance plans.

Health care services are in fact delivered in a variety of ownership structures and ways. We currently have publicly owned facilities such as our hospitals in Alberta; at least, we did until now. In Ontario they do have some privately owned not-for-profit facilities. We know that physician-owned small businesses are another way of delivering practice. And we have corporate-owned, private, for-profit, investor-owned facilities such as we now have in our private surgical clinics. This bill opens the door to having private hospitals. Any time the health care system in Canada is strained, we hear calls for expansion of private health care as if that were a solution. Indeed, it's a very reasonable thing to think about that, but when we look at the research over decades and from around the entire world, we find that indeed it is a myth to think that we can move to a private system instead of a public system and actually improve our health care system.

Private pay allows individuals to pay out of pocket or through some other method such as insurance for their health care. Private, investor-owned delivery uses public funds to pay for care which is delivered in a profit-motivated, investor-owned facility. This means that whatever the public pays has to build in a profit. Those who support privatization often forget that we have to have this extra cost, which means it either costs us more or we're going to get less in our services. The evidence really tells us that private pay does not alleviate wait times in the public system. With our growing surgical backlogs, it's tempting to believe that allowing individuals to pay privately will take them out of the queue so that other people can access the services, but the truth is that we have a limit on how many services we can offer because we have a limit on our human resources. There's just a fixed number of resources available.

If this same pool of doctors and nurses and other health professionals are going to move into the private system, that means they have to come out of the public health care system. Every time we bring in a parallel private system, there is also an incentive for those health care workers to move from the public system to the private system. Health care workers may be paid more in the private system. They may have more control over their hours. They may have an easier group of patients that they're caring for. The stress level may be a lot less, so we see this move into the private system.

Indeed, we are seeing that here in Alberta now in our private surgical facilities. Anaesthesiologists are not only moving more and preferentially to the private system rather than the public system because of the lousy contracts that were made with these facilities that guarantee them a certain number of cases and that guarantee them staffing by anaesthesiologists, but they have an easier job. They can get home, they don't have to do calls in our hospitals, and they can make more money because the way the billing system works for anaesthesiologists is not a per hour rate. It's a rate for the surgery, and then the longer it takes, there's a much lower rate that they get to bill after that. It's that you're really incentivized to do a lot of cases rather than longer, more complex cases, so we're going to see more people moving to do the simple cases and lots of them. There's more money to be made.

10:50

One of the things also to note is that if we look around the world at different systems, in Germany they have a parallel system where they have both a private system as well as a public system. For a person living in Germany to opt out of the public system, first, there's a means test to make sure that they make enough money that allows them to move out of that system. Then they're in that system, and they can't move back. For physicians they're allowed to spend a certain amount of their time serving patients in that system, and they can charge them whatever they want. We know that the number of tests that are ordered there is astronomical because people think they want to get something for their money, but we also know that the public system sometimes hires investigators to ensure that physicians aren't spending more hours in the private system than in the public system. They have this agreement as to how much time they spend in both, but of course they want to earn more money and work in this private system.

In Australia, which introduced a parallel private-pay system in 1997, the experiences show that the hybrid health care system, with this combination of public and private pay, also leads to two-tiered outcomes. Public-pay patients wait more than twice as long for their surgeries compared to the private-pay patients. Not only do the public-pay patients wait longer than what our Canadian patients pay – and we already know we've got problems with our system – we also know that what happens in these private systems, these private hospitals, like we're talking about in this bill, is that patients often have to pay out-of-pocket payments on top of what is paid for in this system and that half of cancer patients are paying more than \$5,000 a year out of pocket in medical expenses and that those in the lowest socioeconomic group are 37 per cent more likely to die of their cancer than those in the highest socioeconomic group. The people that can pay will access this system – they'll pay more for it – but the other people are waiting longer, and indeed they're dying. The other issue is that patients who access the private system when they run parallel are not always informed of their public treatment options. They often have difficulty assessing what the costs are going to be in the private-pay system until they're in need.

I want to tell you about a family member of mine who really was not in favour of the idea of private health services but lives in Montreal and had difficulty accessing a physician. You can quite easily get privately paid physicians there. That's fine. She's reasonably healthy, sees a physician. That goes well. Then she goes back for health screening testing and was not informed that the pathology associated with that health screening could have been sent to the public lab. No. It got sent to a private lab without any discussion, and there's a bill of \$600 for the pathology. As we know from studies, people do not know ahead what their options are.

Now, in British Columbia the Supreme Court of B.C. looked at the impact of private-pay health care in its 2020 ruling on the Cambie case. This was a case looking at private surgical facilities. Remember that this is court evidence, so people couldn't tell lies. They had to present the real evidence. The ruling was that there is considerable evidence and literature that where there is a duplicative private health care system, physicians reduce their time and efforts in the public system. So we have a crisis of workforce, and we're going to be introducing something that will further deplete that workforce except to the people that can afford to pay. This change, this movement of people, leads to increases in wait times for care in the public system.

This decision was upheld in the B.C. Court of Appeal in 2022. In their ruling at that time the justices found that suppressing all private care is necessary to ensure access to medically necessary care is based on need and not on ability to pay. They stated:

The introduction of even small . . . duplicative private healthcare would create a second tier of preferential healthcare for those with the means to either acquire private insurance or pay out-of-pocket once their benchmark was exceeded.

Now, in Alberta we have seen wait times grow for all surgeries except cataract surgery, so one other type of surgery has stayed level, but nine of 11 surgery wait times have grown over the last few years since there's been this massive expansion of use of private surgical facilities for important surgery but at the expense of other surgery. We're seeing that cancer surgeries are getting longer and longer. Whereas I don't want anyone to be suffering in pain with the need for their hip and knee replacement, I would place death of people higher on my needs scale, and that is not what we're doing in this health care system.

Private pay does not reduce wait times because, overall, we lose people to the private system. We lose our workers to go to the private system. Allowing some individuals to pay to get to the front of the line just rearranges the line. We may see more procedures because you can do the simple ones, but we're not seeing any change in wait times in the things that are complicated and that we need to do. By bringing in private hospitals, we're going to be adding another layer of changing the rules around who gets what and who pays for what.

We know that wait times are serious, but we need to address the challenges. Now, there are ways that this can be done within a publicly funded health care system, but instead of actually refocusing and focusing on those needs, what we're seeing are changes so a private hospital is going to break up this . . .

The Acting Speaker: Thank you.

The Member for Edmonton-Beverly-Clareview.

Ms Wright: Thank you, Mr. Speaker. As we begin to have our discussions this evening on Bill 55, the Health Statutes Amendment Act, 2025, I thought I might start with what it is Albertans want out of their health care. Certainly, there has been study after study, poll after poll. I'm sure that all of us have knocked on enough doors to know that what Albertans want – they want a few more doctors. If

you go through the Find a Doctor tool that appears on the Internet these days and you look up Edmonton-Beverly-Clareview just today, you will find that there is a total of one doctor accepting patients. If you are looking for a female doctor, you're not going to find one in the northeast part of Edmonton.

11:00

Albertans want more doctors. Albertans don't want to spend their time waiting in emergency rooms. They don't want to spend their time being triaged endlessly, perhaps moving from the loading dock, like my dad did about a year and a half ago, staying in that loading dock with the paramedics who very kindly stayed with him for about three or four hours, moving into the hallway for about a day-ish, and then finally getting a room for the next two or three days of his life. Nobody wants that. No one wants that for their family, but that is where we are.

Albertans also want to spend less time waiting for surgery consultations, to say nothing of the actual surgeries that they may need for whatever the reason happens to be that they need that. We know that there have been problems getting referrals and waiting and waiting and waiting some more to see that doctor just for that basic consult. That isn't the actual surgery, Mr. Speaker. Albertans spend their lives waiting for health care that they should be able to expect from this government, yet they cannot expect it. This bill does nothing, absolutely nothing to remedy any of those expectations.

Albertans want publicly funded and publicly delivered health care that meets the needs of their families, their loved ones, and themselves. We've often heard the saying that the biggest thing everyone should be thinking of is that no one should have to use their credit card to pay for the health care they need, but that is exactly what this bill opens us up to. In the midst of an affordability crisis, and I know that my colleagues have talked about this, the fact that we're going to be allowing a greater corporatization and privatization of our lauded – we feel very Canadian about our health care system, Mr. Speaker – health care system and we're going to allow all of this big money to come in means that people are absolutely going to have to bring out their credit card to pay for the health care that they should be able to expect from this system.

We're also in the midst of an existential crisis about our country, and here we are dealing with this instead. We shouldn't be. We should be able to expect that our government is actually going to fix the parts that need to be fixed, bolster the parts that need to be bolstered, instead of just kind of blowing up the whole system and telling us: "It's okay; trust us. When we talk about these new hospital operators, we don't mean the really bad people from the States and those big private equity firms, and we don't mean the big insurance companies that won't actually pay for the health care that people need. Trust us." Well, Mr. Speaker, Albertans can't trust this government. There's been too much evidence over the last year and a half.

All of this should have been possible. Changes should have been possible. I should be able to go to the Find a Doctor tool and actually find more doctors that are working in a team environment. My father should not have had to ever been placed in a loading bay because there was no room in that hospital. Patients should expect quality care from health care providers who have working conditions that are appropriate to the job that we are expecting these folks to do. Instead, we're left with this, with all these cuts, with this new entry into privatization, with a lack of workforce planning, that my colleague just talked about. What we are left with and what this bill absolutely will provide will not leave Albertans with the sort of health care they both expect and deserve.

Certainly, one of the things that I know my constituents don't want, and I know this because I've heard this from them, is Trump-style health care or privately operated hospitals that not only cost more but provide less. We already know, and we've been talking about it for, I don't know, the better part of a couple of months, that there are questions about corrupt care and the veracity of the chartered surgical centres, who is paying for what, the potential for bloated contracts.

This bill, at first glance and as my colleague from Edmonton-Glenora noted earlier, could be seen to be important but perhaps without any major or sweeping changes, except that absolutely isn't the case. There are, in fact, major and sweeping changes. They were just kind of swept under the rug a little bit and hidden kind of 90 pages in.

We've also heard over the last little while that the government is getting its ideas from other countries. I just thought I'd touch on Australia for a bit because we've heard the word "Australia" fairly frequently. I found an article that talks about the state of Australia's health care system, Mr. Speaker. They talk about the fact that their version of medicare, their version of coverage has holes, that nearly half a million Australians – and this is a couple of years ago – missed out on seeing a specialist because of cost. More than half a million either put off or skipped out on getting a prescription filled altogether.

In that new report they found that Australians are currently spending about \$7 billion a year out of their own pockets for out-of-hospital medical services and medications. That's even when they are on their own version of pharmacare. They found that treatment waiting periods are so long that patients have no choice but to turn to private treatment providers, but then those private treatment providers are charging above and beyond the rates that they should. For those living with things like obstructive pulmonary disease and chronic kidney disease, the out-of-pocket expense can set a patient back as much as \$5,600 a year. For most of us that's a cost we simply can't bear.

We cannot trust this government to keep corporations out of health care when they are bringing corporations back into our elections, Mr. Speaker. My fear, as I have mentioned, is that this provides that door for those American corporations, again, those private equity companies, the insurance companies, the corporations that own so very many hospitals down in the States to come on over into Alberta. It's an experiment designed to fail, but the problem is the damage will be done to Albertans, to our brothers, to our sisters, to our grandchildren, to their children's children.

As we know from the experience of the Americans themselves, it's that profit motive that very much and very sadly drives the health care experiences of some Americans. I just wanted to read you a couple of stories. As we know, the whole insurance system in the States we've heard just a wee bit about over the last number of months because of some really tragic things that have occurred. There's one patient who says: "Once I had to be taken by ambulance to the ER. The closest and in-network ER was full and rerouting patients. I got hit with a higher ambulance bill for having to travel further to get to a more rural hospital, and my visit wasn't covered because now it was out of network."

There was a person who had an accident, with a badly damaged femur. They were on the waiting list for a cadaver replacement. When there was finally a match and they went for a clearance: "I had a cold, except it was pneumonia, not just a cold. Given that the surgery from the donor part was time sensitive, the anaesthesiologist used a combination of sedatives that were safe because of the pneumonia, but the health care insurance company insisted that the anaesthesia was not medically necessary during a surgery in which

my knee was being cut open and my femur was being operated on. I appealed, but I lost. I got stuck with an \$11,000 bill." I don't want anyone in this province getting stuck with an \$11,000 bill. For many of the folks who live here in this province that could easily be half of their entire wage for an entire year, Mr. Speaker.

Five thousand five hundred hospitals in the U.S. were followed from between 2018 and 2022, a period of only four years and during which time, of course, we had COVID. The dollars per hospital in the U.S., the net patient revenue, went from \$183.9 million in 2018 to \$223.7 million in 2022, and that was, you know, three years ago already. That was an increase of about 5 per cent annually. That's extra and above profit for those corporations. Private hospitals, Mr. Speaker, are not about serving the patients; they're about serving the profits of the shareholders of those hospitals. We shouldn't even be considering for a moment that sort of health care system here.

This is not what Albertans want today, and it certainly wasn't what Albertans wanted a number of years ago when medicare first came in. There are some basic values that come along with our medicare system. It should be universal, it should be portable, it should be administered publicly, it should be comprehensive, and it has to be accessible for all. That fight for medicare, as we probably know, started in actually the 1940s with Tommy Douglas over in Saskatchewan. What he believed was that governments owed their citizens a reasonable standard of living and access to basic services. But the fight for medicare was not at all an easy one.

Sadly, I have a bit of a personal story about this. Although it had been settled by the time 1963 came around, there had been a really voracious doctors strike at the time because many doctors in Saskatchewan were not happy about moving to this new medicare system, and unfortunately my brother, who was a newborn at the time, got caught in that particular crossfire. My mother and my father were medicare patients, and they ended up essentially being held hostage by the hospital. They wanted my mom and dad to pay because that was the way it had always been done. At that time small towns in Saskatchewan were having, I guess, their own version of an existential crisis, whether to go with this new system or not. Unfortunately, my newborn brother ended up in the hospital for a week and a half when he simply didn't need to be, along with my mother, who was not at all happy about that.

11:10

Albertans never have wanted this, and we have lots of instances. In 1979 when extra billing was floated, with doctors and facilities charging fees over the schedule – shades of Australia there – that became a massive health crisis here in Alberta. Even all those years ago, 50-odd years ago, Albertans knew that that wasn't right because that changed the access for folks. By 1980 federal Health ministers were getting involved because it hadn't been resolved.

There was a 1982 review of health care, and in the findings of that review Justice Hall said that Canadians want a publicly funded, publicly delivered, and government-administered health care system. He recommended at the time, because at the time we had health care premiums, that the premiums and user fees be outlawed since they were contrary to the principle of universality. Then he made additional recommendations: we need more community health care centres, we need more support for home care, we should be employing nurses more extensively, and we should be using paraprofessionals more.

I have heard those sorts of things. We're still talking about those. Yet this act that we're talking about today will make that more difficult. To open the door to privatization and that profit motive will not help health care at all.

We had the years of a previous Premier, Premier Klein, reforms that targeted Alberta's health professions. They floated the idea of

a completely two-tiered health system, much like we will end up with, if this bill goes through. There was a diminishing of local voices, which this bill will give us one more time. There was a fight to protect public hospitals throughout the 1990s, which we will once again, unfortunately, have to do, should this bill pass.

Then came Bill 11, which again had absolutely nothing to do with protecting health care; it was simply an excuse to institutionalize private, for-profit hospitals in this province. Unfortunately, Mr. Speaker, the more things change, the more they remain the same. Albertans did not want that third way then, and they certainly don't want it now.

In those days – this was perhaps the most interesting thing with my little foray into research – there was talk of conflicts of interest, which I think we'd probably call corrupt care today, where CEOs of health care authorities were also seen to have private interests in the companies carrying out renovations and additions to Alberta hospitals. There was a contract for design of a private insurance funding system let to APN Consulting Canada, which was a subsidiary of Chicago-based Aon corp, a global reinsurance broker and parent to other companies in the business, which included Reed Stenhouse, Canada's oldest insurance broker, folks who have stakes in private long-term facilities while also acting as chairs of regional health authorities, all the while standing against improved standards of care for those same facilities. Mr. Speaker, all of this would be completely and utterly tiresome if it weren't so dangerous to the health of all Albertans.

Health care, Mr. Speaker, is a right; it is not a privilege. This government has made choices. They could still make choices. They could make the choice to withdraw the bill. They could make the choice to halt the refocus. They could make the choice to accept the amendments which I'm sure are going to be coming from us. If this government isn't interested in that, they might want to listen to doctors and nurses and health care professionals, and they might also want to listen to Albertans, who I am very positive they will be hearing from soon.

This bill does nothing to actually improve health care. It does nothing to stop the chaos Albertans currently feel and the distrust they have in this government's ability to provide the kind of health care they need when they need it. I will not be supporting this bill, Mr. Speaker.

The Acting Speaker: Thank you.

The Member for Edmonton-Riverview has risen.

Ms Sigurdson: Thank you, Mr. Speaker. It's my pleasure to join the debate on Bill 55, the Health Statutes Amendment Act, 2025. You know, this is just the most recent bill, but we've had several bills from the UCP government, starting with the former Premier Kenney. We remember Bill 30 brought forward by the Minister of Health at that time, Shandro. Really, it's causing a significant upheaval in our health care system.

The current Premier says that the changes are going to help us reduce wait times for care and surgeries, that they will transform the health system in a very positive way, that they will help us even get more family docs, which doesn't make any sense to me. These are all kind of talking points that we hear from the UCP, but what we know that is actually happening is a radical disruption, and what we have is corruption, chaos, cuts, and cruelty.

The government on their website have a description of this legislation. It's their own government communications, and it presents that it's a very innocuous bill. It just addresses outstanding health care system policy regarding the refocusing. That's all that it's about. It's just, you know, a very innocent piece of legislation. It identifies that the "key changes would strengthen health

foundations by streamlining governance functions, bylaw approval and board member [appointments],” clarify public health’s role, clarify how hospitals are managed, and amend the Protection for Persons in Care Act to provide additional capacity. This all sounds innocuous, as I’ve already said, but, of course, let’s unpack this because it’s anything but.

“Streamlining governance functions” is code for: let’s consolidate all power in decision-making in the Minister of Health. And what about – there’s nothing to see here, folks – the erosion of democracy so that things are done behind closed doors and we don’t know what’s going on? Also, what about disregarding professionals who work within the system? We know very well that there’s a culture of fear and control and that if people speak up, they get fired or they are, you know, pushed to the back or something. It’s not an open system that respects the professionals that work within it; really, it’s all about privatization, government control, lack of transparency and accountability, and creating a culture of fear and disregard for professionals working in the public system.

Let’s talk a little bit about the privatization aspects of it. Recently the Parkland Institute published a report, and they talked about that under the UCP watch “public payments to for-profit surgical facilities increased by 66 per cent.” Significant. That’s privatized health care. There we go.

We all know we’re in this big scandal now called corrupt care because bloated contracts were being given to Sam Mraiche. He has received many millions of dollars in funding for services that he hasn’t even fulfilled on, and the government is going: “Oh, my goodness. We knew nothing about this. It must have been the CEO, so let’s fire her.” But she’s the one who actually rang the bell. She’s the one who said: hey, what’s going on here? She was accountable and responsible, and guess what happened to her? She was fired by this government because they don’t care. They don’t want to have a fair, transparent, accountable process.

These for-profit surgical facilities: 66 per cent increased investment in them. What about hospital operating room expenditures in public hospitals? How much have they increased? I mean, we need more. We have long wait-lists. The UCP purport to want to shorten those wait-lists. Well, we’re only going to invest a 12 per cent increase in them; 66 per cent contrasted with 12 per cent. I know that hospital emergency operating rooms are closed, many of them, because they don’t have the staff, they don’t have the resources to actually carry out those surgeries. So if the government really wants to shorten wait times for people with surgeries, guess what? They should absolutely reverse those numbers. They should be investing 66 per cent in a public system as opposed to the meagre 12 per cent that they are.

11:20

We also know that it’s not working. They think that privatization – of course, my colleague from Calgary-Varsity spoke about this – is going to magically help with wait times and all that, but it’s not true. It’s not true. Research has shown that over and over again all across the world.

That’s another problem with this UCP government. They don’t really care about facts. They just make decisions based on – I don’t know – what they feel like that particular day, but it doesn’t make a whole heck of a lot of sense. The CIHI institute, the Canadian Institute for Health Information, says that median wait times for Alberta in nine of the 11 priority surgeries tracked have increased under the UCP’s watch.

I mentioned already that the fired CEO of AHS was pressured to extend private surgical contracts. She was concerned about, you know, the large, bloated payments to these clinics. They were receiving much more than it costs in the public system, and that just

made her head go: what’s going on here? She validly wanted to find out what was going on. She was moving forward on a forensic audit, going to talk to the Auditor General, and guess what happened? She gets fired.

Costs have increased in outsource procedures done in private facilities by 52 per cent. This is just another sort of nail in the coffin of why privatization doesn’t work. This bill is obviously taking us in the wrong direction.

I also just want to talk about the role of public health, which is also addressed in this bill. This is an area where the government really don’t seem to understand what public health is, and mostly they want to avoid it until perhaps there is some kind of crisis. We’re in a crisis right now. We know that there are around 300 Albertans who have measles. They’ve not been promoting a public campaign for immunization until sort of it’s almost too late. Like, some people are, I understand, in critical condition in intensive care units. The government really sort of just neglected this file.

In this Bill 55 they talk about moving public health nurses to Primary Care Alberta. Of course, these professionals oversee front-line public health services such as communicable disease control, immunizations, newborn screening, and health promotion. We know that when there are good, robust public health measures, then that supports all of our population.

We heard earlier today in this Chamber about how measles is 100 per cent preventable with public health measures like vaccinations, but instead, people weren’t encouraged. The member from I think Calgary-Lougheed was having a forum on – you know, supporting a bunch of antivaxxer folks. I mean, it’s not even hidden. It’s very clear that they’re against this very important public health measure, again not understanding the science of it, not understanding the facts of it, and just really pandering to their base rather than following the science. It’s kind of shocking, but it’s the reality, and we’re having to deal with that. I mean, it’s making a huge impact on the citizens of Alberta.

Another area that’s in this public health world is, of course, the firing of the CMOH. Currently the government can’t even fill that position because nobody wants it. Professionals don’t trust this government because they won’t let them do their job as professionals, following their own codes of ethics, standards of practice, their own expertise as professionals. It sort of flies in the face of what being a professional is all about. As far as I know, the Minister of Health is not any kind of a medical professional, and she shouldn’t be calling the shots on this.

We know that the UCP does not respect the values of public health, including their disregard for science, that I’ve just talked about, not making evidence-based decisions. Of course, it’s not only in this area. We see this all over the place. We know that mental health and addictions, the decisions around pretty much eliminating – you can’t even say it. You know, I’ve talked to social workers in the field. You can’t even say “harm reduction” anymore.

We know that vulnerable Albertans experiencing addictions need a spectrum of services. They need something to help them wherever they are, and harm reduction is the best for them. Then, of course, you develop a relationship and you can support people to access treatment when they’re ready, but you don’t just ignore them or lock them up, which, again, is what this government is doing. It’s violating human rights. It just makes absolutely no sense. Again, it rejects the evidence and it makes no sense to me.

Another piece in this legislation is just about the Protection for Persons in Care Act. This legislation says that now it’s going to be

given additional capacity to deal with this. Of course, a very important part about any government is sort of the checks and balances so we don't just give people a bunch of money to provide a certain service. You actually have people who will follow up, make sure that services are appropriately offered. If there are issues, then we do have public servants who will go and do investigations regarding them. That's what the Protection for Persons in Care Act is supposed to do, largely for the continuing care system.

These are vulnerable seniors oftentimes, and we know that that system – I mean, I talk to so many Albertans every day about their concerns about their loved ones because they feel like they're being neglected, not supported. We know that although the UCP have hidden the reports, through a FOIP we found out that last year there was a sharp increase in founded allegations, three times more than the previous year, all under the UCP's watch. It's a failure to provide the necessities of life. This is in continuing care institutions. Lack of proper nutrition, lack of hydration: these are some prevalent issues. It's heinous. It's awful.

This bill, Bill 55, needs to be denounced and voted against by all members of this Assembly because it just takes us further down the road of privatization, government control, lack of accountability, and a real disregard for professionals.

With that, Mr. Speaker, I will adjourn debate.

[Motion to adjourn debate carried]

The Acting Speaker: The Government House Leader.

Mr. Schow: Thank you, Mr. Speaker. I rise to request unanimous consent of the Assembly to revert back to Notices of Motions.

[Unanimous consent granted]

Notices of Motions

The Acting Speaker: The Government House Leader.

Mr. Schow: Thank you, Mr. Speaker. I rise to give oral notice of Government Motion 63, sponsored by myself, which reads as follows:

Be it resolved that pursuant to Standing Order 4(1) the Assembly shall meet in the morning on Tuesday, May 13, 2025, for consideration of government business unless the Government House Leader notifies the Assembly that there shall be no morning sitting that day by providing notice under Notices of Motions in the daily Routine or at any time prior to adjournment on a sitting day.

I also wish to give oral notice of Government Motion 64, sponsored by myself, which reads as follows:

Be it resolved that when further consideration of Bill 55, Health Statutes Amendment Act, 2025, is resumed, not more than one hour shall be allotted to any further consideration of the bill in second reading, at which time every question necessary for the disposal of the bill at this stage shall be put forthwith.

Thank you, Mr. Speaker.

Then, of course, I will end on a banger here. I move that the Assembly be adjourned until 1:30 p.m. Thursday, May 8, 2025.

[Motion carried; the Assembly adjourned at 11:30 p.m.]

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